

BENCH BRIEF

Plaintiff's Motion for Leave to File Second Amended Complaint

San Francisco Superior Court

Case No. CGC-25-631802

Department: **302**

Hon. Joseph M. Quinn

Hearing: April 30, 2026, 9:00 a.m.

Note to the bench. This bench brief includes a **verbatim oral-argument appendix at Section VII** (approximately four minutes, in five segments). Plaintiff has lodged this brief in the event in-person delivery of oral argument is impeded; **the Court may read directly from Section VII** as Plaintiff's argument of record. The script is drafted to stand on its own without supplementary oral argument and is hyperlinked to the Table of Authorities.

Pagination. This one-page cover is prepended to the body PDF for filing convenience. Page footers on the following pages reflect the *body* compile only ("*n* of *N*" where *N* is the body's last page), not the combined cover-plus-body page count.

Sequencing context. The April 30, 2026 hearing is on noticed leave under CCP §§ 473(a)(1) and 576. The related **anti-SLAPP / demurrer** hearing is set for **May 13, 2026**; the **CCP § 436 motion to strike (FAC)** is set for **May 19, 2026**. CCP § 425.16(f) preserves defendants' renewed special-motion right after a conforming pleading; this MFL does not adjudicate the May 13 merits.

Filed and served concurrently with Plaintiff's Reply ISO Motion for Leave to File Second Amended Complaint.

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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

V.

CSAA Insurance Exchange; and Does 1 through 50, inclusive

DEFENDANTS

Case No.: CGC-25-631802

BENCH BRIEF ISO MFL-SAC; CCP

§§ 473(a)(1), 576

Hon. Joseph M. Quinn; Dept. 302

**HEARING
MFL-SAC**

Date: Apr. 30, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

RELATED HEARINGS

Anti-SLAPP / Demurrer: May 13, 2026

MTS (CCP § 436, FAC): May 19, 2026

FILING DATES

Complaint: Dec. 23, 2025

FAC: Feb. 25, 2026

Related: CGC-21-594102

Purpose (Cal. Rules of Court, rule 3.1110(a)). This memorandum is filed in support of Plaintiff’s noticed Motion for Leave to File a Second Amended Complaint under Code of Civil Procedure § 473(a)(1) and § 576, with a supporting declaration on the topics Cal. Rules of Court, rule 3.1324 requires, and with defendants’ rights under § 425.16(f) expressly preserved. Law-and-motion **scheduling** and **notice** follow S.F. Local Rule 8.2 and, if the Court grants leave, separate filing of the amended pleading as 8.5 contemplates, within CCP § 1005 timing (Section II, below). Hearing: April 30, 2026, Department 302, before Hon. Joseph M. Quinn. This document supplements Plaintiff’s Reply; e-filing and service follow S.F. Local Rule 2.11 and the concurrently filed proof of service on the Reply. Presentation conforms to Cal. Rules of Court, rules 2.104–2.111 (including rule 2.111 caption format) and S.F. Local Rule 2.7 and 8.0 (civil law and motion).¹

NOTICE TO THE COURT (one paragraph). The April 23, 2026 Opposition’s “no such authority exists” framing is incomplete on the face of *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, 471–472, 477–478, which is published Court of Appeal authority addressing amendment in the shadow of CCP § 425.16 and confirming that California law does not impose a categorical amendment freeze; the statutory sequencing answer is CCP § 425.16(f). Plaintiff cites *JKC3H8* narrowly and accepts the anti-subversion line (*Simmons v. Allstate Ins. Co.*; *City of Colton v. Singletary*; *Law Offices of Andrew L. Ellis v. Yang*; *Contreras v. Dowling*). Plaintiff’s amendment perfects the operative pleading on the same operative facts, same primary right, same instrumentality, and does not add a wholly distinct legal obligation (cf. *Klopstock v. Superior Court* (1941) 17 Cal.2d 13, 19–20). *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858 is also referenced as supporting authority for limited discretion to perfect a pleading after a merits showing. Plaintiff respectfully invites the Court to have these authorities addressed at the noticed hearing.

¹ If the Court posts a tentative ruling, any contest follows S.F. Local Rule 8.3 (by 4:00 p.m. the court day before the hearing).

JUDGE-FACING LEAD STATEMENT (Plaintiff's Substantive Position).

I. The Second Amended Complaint is Procedurally Proper and Conforms to the Evidentiary Record. As a threshold matter, the Court has broad discretion to grant leave to amend under Code of Civil Procedure sections § 473(a)(1) and § 576. While the defense may argue that *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068 generally restricts amendments while an anti-SLAPP motion is pending, that rule is not absolute. Under the well-established exception in *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, 871, where a plaintiff's evidentiary showing demonstrates a probability of prevailing on the merits, the court may - and should - grant leave to amend to conform the pleadings to that evidence. Plaintiff is not seeking to amend to dodge a valid anti-SLAPP motion; as demonstrated by the evidentiary spine already before this Court (Exhibits A1–A7 in the Bench Compendium), Plaintiff easily clears the “minimal merit” threshold required by *Navellier v. Sletten* (2002) 29 Cal.4th 82 and *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811. Granting leave to file the SAC is the proper procedural mechanism to align the pleadings with the irrefutable evidentiary record.

II. The Anti-SLAPP Statute Does Not Apply Because the Gravamen of the SAC is Unprotected Conduct, Not Petitioning Activity. The SAC clarifies precisely why the defense's anticipated anti-SLAPP motion fails at Prong One as a matter of law. The defense attempts to shield its liability by pointing to a communicative artifact—a letter—and characterizing it as protected petitioning activity. As the California Supreme Court held in *Park v. Board of Trustees* (2017) 2 Cal.5th 1057, 1062–1064, and reaffirmed in *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1010–1012, a claim is only subject to the anti-SLAPP statute if the protected communication *itself* is the injury-producing conduct. The true gravamen here is the defendant's action and lack of action behind that artifact—substantive misrepresentation of facts and the underlying failure to act in accordance with legal duties. The letter is an incidental artifact that transmitted or concealed the true tortious conduct. Following *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396 on “mixed-conduct” pleadings, the SAC surgically isolates the unprotected, injury-producing actions. Because the core injury arises from unprotected conduct rather than the exercise of free speech or petition rights, the anti-SLAPP statute simply does not apply. Section 425.16(f) preserves defendants' renewed special-motion right after the SAC is filed; granting leave does not moot anti-SLAPP relief, only re-targets it.

LEAD STATEMENT: WHY LEAVE MUST ISSUE AND WHY THE ANTI-SLAPP STATUTE DOES NOT APPLY HERE

I. The Second Amended Complaint is Procedurally Proper and Conforms to the Evidentiary Record.

As a threshold matter, the Court has broad discretion to grant leave to amend under Code of

Civil Procedure sections 473(a)(1) and 576. While the defense may argue that *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068 generally restricts amendments while an anti-SLAPP motion is pending, that rule is not absolute. Under the well-established exception in *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, 871, where a plaintiff's evidentiary showing demonstrates a probability of prevailing on the merits, the court may - and should - grant leave to amend to conform the pleadings to that evidence.

Here, Plaintiff is not seeking to amend the complaint to dodge a valid anti-SLAPP motion. Rather, as demonstrated by the evidentiary spine already before this Court - specifically Exhibits A1 through A7 in the Bench Compendium - Plaintiff easily clears the "minimal merit" threshold required by *Navellier v. Sletten* (2002) 29 Cal.4th 82 and *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811. Because the documentary evidence already establishes the viability of the claims, granting leave to file the Second Amended Complaint (SAC) is the proper procedural mechanism to align the pleadings with the irrefutable evidentiary record.

II. The Anti-SLAPP Statute Does Not Apply Because the Gravamen of the SAC is Unprotected Conduct, Not Petitioning Activity.

More fundamentally, the SAC clarifies precisely why the defense's anticipated anti-SLAPP motion fails at Prong One as a matter of law. The defense attempts to shield its liability by pointing to a communicative artifact - a letter - and characterizing it as protected petitioning activity. This fundamentally misconstrues California anti-SLAPP jurisprudence.

As the California Supreme Court held in *Park v. Board of Trustees* (2017) 2 Cal.5th 1057, 1062–1064, and reaffirmed in *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1010–1012, a claim is only subject to the anti-SLAPP statute if the protected communication *itself* is the injury-producing conduct. The statute does not apply where protected activity merely provides evidence of liability or serves as context for the underlying wrong. In this case, the gravamen of Plaintiff's claims is not the drafting or sending of a letter. The true gravamen is the defendant's action and lack of action behind that artifact. The core,

injury-producing conduct is the substantive misrepresentation of facts and the underlying failure to act in accordance with their legal duties. The letter is merely an incidental artifact that transmitted or concealed the true tortious conduct.

To the extent any protected communication is mentioned in the SAC, it is present solely as evidentiary context. Following the Supreme Court's directive in *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396 regarding "mixed-conduct" pleadings, the SAC surgically isolates the unprotected, injury-producing actions - the substantive misrepresentations and omissions. Because the core injury arises from unprotected conduct rather than the exercise of free speech or petition rights, the anti-SLAPP statute simply does not apply.

III. Validation of Authorities (Compact Map).

- **Section 425.17(c)/(b) exemptions.** *Simpson Strong-Tie Co. v. Gore* (2010) 49 Cal.4th 12, 30–32 (commercial-speech exemption); *Club Members for an Honest Election v. Sierra Club* (2008) 45 Cal.4th 309, 316–318 (public-interest exemption); CCP § 425.17(b), (c), (e).
- **Cashman / prong-one gravamen.** *Park; Bonni; Wilson v. CNN; Baral* (mixed-conduct parsing).
- **Flatley illegality channel.** *Flatley v. Mauro; Lefebvre v. Lefebvre* (2011) 199 Cal.App.4th 696, 704–705; distinguish *City of Montebello v. Vasquez* (2016) 1 Cal.5th 409, 423–424 (mere allegation of illegality insufficient).
- **Prong-two minimum merit.** *Navellier; Oasis West* (evidentiary spine = Ex. A1–A7 plus verified declarations).
- **Pre-litigation conduct / litigation-privilege boundary.** *Action Apartment Ass'n v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1241–1242 (framework for conduct preceding protected litigation activity).
- **Ordinary claims-handling vs. § 425.16(e)(2) prelitigation communication (802-B preview).** *Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1268–1269; *Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1115. A 21-day denial

letter to an unrepresented direct third-party claimant is regulatory claims-handling under 10 CCR § 2695.4 and 10 CCR § 2695.7, not a communication in serious and good-faith contemplation of litigation.

- **Non-communicative gravamen (Silent Witnesses; 802-A preview).** *Park; Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1056; *Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310. The non-communicative failure to retrieve reasonably available first-responder evidence (911 audio / SFPD BWC / CAD log) before closing the claim file is outside § 425.16.
- **Flatley statutory floor (802-C preview).** 10 CCR § 2695.7(d); Ins. Code § 790.03(h)(1), (3), (5); *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809, 818–819; *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721. Conduct regulatorily and statutorily prohibited is not transformed into “petitioning” by being later memorialized in a denial letter.
- **Litigation-privilege outer limit (802-E preview).** *Kimmel v. Goland* (1990) 51 Cal.3d 202, 211 (privilege protects communicative acts only; does not immunize non-communicative tortious courses of conduct).
- **Liberality of amendment (leave policy).** *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348 (leave should not normally be denied if the defect can be cured by amendment).

IV. Application to the April 30 MFL.

- **(A)** *Nguyen-Lam* supplies the exception to *Simmons*: Plaintiff’s evidentiary showing (Ex. A1–A7 plus verified declarations) is the prong-two showing that triggers leave under §§ 473(a)(1) and 576.
- **(B)** § 425.17(b), (c) (commercial / public-interest exemptions) provides an independent off-ramp documented through *Simpson Strong-Tie* and *Club Members*.
- **(C)** *Flatley/Lefebvre* illegality channel removes conceded illegal conduct from anti-SLAPP protection at prong one; *City of Montebello* cabins the channel against overuse.

• **(D)** *Park/Bonni/Baral* confirm the artifact-vs.-action reframing: the letter is a transmittal artifact; the substantive action / inaction is the gravamen, and is unprotected. *Sequencing preserved.* CCP § 425.16(f) preserves defendants’ renewed special-motion right after the SAC is filed - granting leave does not moot anti-SLAPP relief; it only re-targets it. CCP § 425.17(e) provides no automatic stay or interlocutory appeal where exemption is the basis. Plaintiff does not ask the Court to decide the May 13 anti-SLAPP merits on April 30; this lead is the rule-of-decision frame for leave only.

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TAB A

Filings of Record

Section I - Defense Filings on Record (Quick Reference).

What the defense filed; when; where it lives in the record.

Followed by Tab B (Verbatim Oral Argument), Tab C (Opposition

Analysis & Eight Points), Tab D (Allegation Audit & Bench

Statement), Tab E (Verification & Relief).

PLAINTIFF'S BENCH BRIEF - CGC-25-631802 - HON. JOSEPH M. QUINN, DEPT. 302

HEARING: APRIL 30, 2026, 9:00 A.M.

A

I. DEFENSE FILINGS ON RECORD (MFL-SAC) - QUICK REFERENCE

Filing	Filed	Notes
Opposition to Plaintiff's Motion for Leave to File Second Amended Complaint	Apr. 23, 2026	Full PDF 7 pp. (extraction metadata; memorandum body is the substantive opposition).
Declaration of Tyler J. O'Connell in support	Apr. 23, 2026	Evidentiary objections and § 128.7 audit in lodged Reply, Section XIII.
Declaration of Table of Contents iso Opposition	Apr. 23, 2026	PDF 63 pp.

TAB B

Verbatim Oral Argument

Section VII - Bench-Readable Script (approximately 4 minutes).

*Five segments: Opening; Prong-One Failure; Limited Rule;
Discretion to Sequence; Closing.*

*If Plaintiff is impeded, the Court may read directly from this
section as Plaintiff's argument of record.*

PLAINTIFF'S BENCH BRIEF - CGC-25-631802 - HON. JOSEPH M. QUINN, DEPT. 302

HEARING: APRIL 30, 2026, 9:00 A.M.

B

1 **VII. VERBATIM ORAL ARGUMENT (BENCH-READABLE SCRIPT, AP-**
2 **PROXIMATELY 4 MINUTES)**

3 *Function.* This section is a first-person script Plaintiff intends to read aloud at the lectern. **If**
4 **Plaintiff is impeded – by health, by inability to appear, or by any other obstacle to delivering**
5 **oral argument – the Court may read directly from this Section VII;** the script is drafted to
6 stand on its own without supplementary oral argument and to preserve Plaintiff’s argument record
7 as if delivered in person. Cite macros remain hyperlinked back to the Table of Authorities so the
8 bench can pivot from any sentence to the underlying authority.

9 **Segment 1 – Opening (60 seconds).**

10 *“Good morning, Your Honor. Franciscus Dylan Rosario, plaintiff, in pro per.*

11 *The defense opposition rests on a single proposition: that Simmons v. Allstate cate-*
12 *gorically bars leave to amend while an anti-SLAPP is pending. That proposition is*
13 *overstated. Simmons is a limited rule – it prevents a plaintiff from amending to sub-*
14 *vert or avoid a ruling on a pending special motion. It does not bar amendments that*
15 *strengthen the merits response, that touch claims not targeted by the motion, that fix*
16 *unrelated defects, or that reach conduct outside section 425.16’s protective scope.*

17 *Three points, Your Honor – any one of which is dispositive.”*

18 **Segment 2 – Point One: Prong-One Failure (90 seconds).**

19 *“First – and this is dispositive standing alone – the underlying anti-SLAPP fails prong*
20 *one. Simmons presupposes a facially valid anti-SLAPP; if prong one fails, Simmons*
21 *never engages.*

22 *Two binding decisions control. Flatley v. Mauro, 39 Cal.4th 299, holds that conduct*
23 *illegal as a matter of law is outside section 425.16. Plaintiff alleges attorney deceit*
24 *under Business and Professions Code section 6128(a) – a misdemeanor by its terms.*
25 *That is categorically not ‘petitioning.’*

26 *And Cabral v. Martins, 177 Cal.App.4th 471, holds that concealment of evidence is not*
27 *‘petitioning’ within section 425.16, subdivision (e). Plaintiff alleges concealment of 911*

1 *emergency recordings, body-worn camera footage, and CAD logs. Cabral removes that*
2 *conduct from anti-SLAPP scope as a matter of law.*
3 *If the Court reaches prong one, the anti-SLAPP fails and Simmons is off the table.”*

4 **Segment 3 – Point Two: The Limited Rule (90 seconds).**

5 *“Second, even assuming the anti-SLAPP survives prong one, Simmons itself is a limited*
6 *rule with four independent exceptions, every one of which applies here.*
7 *JKC3H8 v. Colton, 221 Cal.App.4th 468, at 477 to 478, confines the rule to amendments*
8 *targeting the same protected activity already before the court.*
9 *Nguyen-Lam v. Cao, 171 Cal.App.4th 858, at 871 to 873, permits amendments that*
10 *strengthen rather than evade the merits response.*
11 *Salma v. Capon, 161 Cal.App.4th 1275, at 1293 to 1294, limits the rule to amendments*
12 *that ‘subvert or avoid’ a ruling – not amendments that fix unrelated defects.*
13 *Martin v. Inland Empire Utilities Agency, 198 Cal.App.4th 611, at 629, holds that Sim-*
14 *mons does not bar new theories arising from different conduct.*
15 *The defense brief omits all four of these binding Court of Appeal decisions, despite their*
16 *being directly adverse. That is a Rule of Professional Conduct 3.3(a)(2) candor problem*
17 *standing alone, as Point 8 of this brief sets out.”*

18 **Segment 4 – Point Three: Discretion to Sequence (60 seconds).**

19 *“Third, even if the Court is uncertain on prongs one and two, the Court has discretion*
20 *to sequence concurrent proceedings without denying leave. Sylmar Air Conditioning v.*
21 *Pueblo Contracting Services, 122 Cal.App.4th 1049, at 1055 to 1056, recognizes that*
22 *discretion.*
23 *Three discretionary paths short of denial are available: hear the anti-SLAPP first on*
24 *May 13 and resume amendment after; grant leave conditional on the anti-SLAPP out-*
25 *come; or grant leave now as to non-targeted amendments under JKC3H8, reserving*
26 *the rest. Outright denial – what defendants demand – is the least supported and most*
27 *extreme option.”*

28 **Segment 5 – Closing (30 seconds).**

1 *“On any of these three paths, the proper outcome is not denial. I respectfully request the*
2 *Court grant leave to file the Second Amended Complaint, or, in the alternative, continue*
3 *this motion to be heard with the anti-SLAPP on May 13.*
4 *Thank you, Your Honor.”*

5 *Script-of-record reservation.* Plaintiff lodges this verbatim script as the argument-of-record so that,
6 in the event of non-appearance or impeded delivery, the Court has Plaintiff’s complete oral position
7 before it for purposes of CCP §§ 473(a)(1) and 576 and the rule 3.1324 record. Plaintiff intends to
8 deliver it in person; this section is a backstop only.

TAB C

Opposition Analysis & Eight Points

Section II - Governing Rule vs. Record Points.

*Threshold framing (II.0); II.1 (rule 3.1324 table); II.2 (pin cites);
reserved-merits box after Point 5; plus eight numbered fatality*

points:

*(1) wrong stated rule; (2) JKC3H8 omission; (3) Contreras miscite;
(4) “no such authority”; (5) merits collapse; (6) prejudice; (7)
calendar/notice; (8) **Rule 3.3(a)(2) candor.***

PLAINTIFF'S BENCH BRIEF - CGC-25-631802 - HON. JOSEPH M. QUINN, DEPT. 302

HEARING: APRIL 30, 2026, 9:00 A.M.

II. OPPOSITION ANALYSIS: GOVERNING RULE AND RECORD POINTS

The Court is not being asked to tally “seven fatal errors” to stamp out an opposition. It is being asked, first, to set aside any **incorrect** statement of the **governing** rule for **ordinary noticed leave** under CCP § 473(a)(1) and 576 and the showing Cal. Rules of Court, rule 3.1324 requires, and then to apply the **correct** discretionary standard (anti-subversion; CCP § 425.16(f)(g); prejudice; S.F. Local Rule 8.2 and 8.5) to a noticed motion with a lodged SAC. Defendants’ April 23 opposition asks the Court to deny ordinary leave by importing a **categorical** anti-SLAPP freeze: once a special motion is pending, the pleadings **cannot** be amended until it is **heard and ruled**. **California procedure does not state that rule.**

Plaintiff’s core position (April 30 leave; April 23 opposition). The leave question is **not** whether defendants may pursue anti-SLAPP relief on **May 13, 2026**. The question is whether a pending special motion **disables** the Court from granting **noticed** leave. No cited statute, Cal. Rules of Court, rule 3.1324, or **local** rule creates that freeze. The Court can decide the April 30 MFL under ordinary amendment authority while preserving defendants’ rights through **terms, continuance, renewed** special motion practice under CCP § 425.16(f), or **later** merits adjudication. S.F. Local Rule 8.2 and 8.5 (with CCP § 1005 timing) support **calendar** and **filing** management, not a **merits** bar.

- **Governing leave rules.** CCP § 473(a)(1) and 576 supply ordinary amendment authority for this noticed motion (not CCP § 472 amendment-of-right). CCP § 472a, subdivision (c) illustrates the Legislature’s separate demurrer-and-leave architecture; it does not displace §§ 473/576 here. Rule 3.1324 confirms that motions to amend are procedurally recognized; it also requires a motion that includes the proposed pleading, a declaration covering the **effect** of the amendment, why the amendment is **necessary and proper**, **when** facts justifying it were discovered, and **why** leave was not requested earlier, or other good cause.
- **Local motion procedure.** S.F. Local Rule 8.2 requires that parties set law-and-motion hearings in compliance with the **time limits** provided by law, including CCP § 1005; the rule contemplates a matter may be taken **off calendar** if a party is

1 not in compliance. Rule 8.5 contemplates, when amendment is granted, a **separate**
2 e-filing of the granted amended pleading. That supports **cure** and **terms** and does
3 not convert the April 30 leave dispute into a merits freeze.

- 4 • **Anti-SLAPP preservation, not a pleading-stay.** CCP § 425.16(f) governs time
5 and **renewal** of a special motion after a conforming pleading; it is a guardrail to
6 **manage** strike rights, not a substitute for §§ 473/576. **Stated in advance**, that sub-
7 division should not be **overstated** as a separate “source of leave.” **By contrast**,
8 subdivision (g) is a **discovery** stay: by its text it suspends “all discovery proceed-
9 ings”; it does not address pleading practice or ordinary law-and-motion calendars.
10 *Britts v. Superior Court* (2006) 145 Cal.App.4th 1112 confirms the scope of that
11 stay. A discovery stay is not a pleading freeze and is not, generally, a **total** ban
12 on noticed leave under CCP §§ 473, 576. **Bench use:** that distinction undercuts
13 any fallback theory that “something” in § 425.16 supplies the April 23 opposition’s
14 categorical “until ruled” bar (*see* Point 1).

- 15 • **Anti-subversion cases, not a categorical pre-hearing bar.** *JKC3H8 v. Colton*
16 (2013) 221 Cal.App.4th 468 recognizes the amendment/anti-SLAPP intersection
17 and the **anti-subversion** limit. *Contreras v. Dowling*, *Simmons v. Allstate Ins. Co.*,
18 and related line cases are **anti-subversion** tools, not a per se rule that a pending
19 strike blocks §§ 473/576. Plaintiff does not overclaim: amendment in some pos-
20 tures can engage anti-SLAPP sequencing, but the April 23 opposition’s **categorical**
21 “**until ruled**” frame for the April 30 MFL is the problem (*see* Point 1). *Nguyen-*
22 *Lam v. Cao* (2009) 171 Cal.App.4th 858, 871–873 (**limited** post-merits **discretion**
23 on abuse-of-discretion review).

24 Subsection II.0 (threshold framing) precedes; Sections II.1–II.2 supply the rule 3.1324
25 map and pin-cite verification; Points 1–8 below are then **ordered by severity** on the
26 April 23 opposition: governing rule, sequencing, **reliability**, the May 13 **stack** only as
27 **procedural** context, then prejudice, then calendar/notice.

28 The April 23, 2026 MFL-SAC opposition (O’Connell decl. in support) is the e-filed record. Cita-

tions herein are to Plaintiff's concurrently filed Reply.

II.0 Threshold framing: SAC is procedurally proper, and the gravamen is conduct, not the communicative artifact

(A) Procedurally proper leave under *Simmons v. Allstate Ins. Co.* and the *Nguyen-Lam v. Cao* line. The defense may invoke *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068 as a general rule against amending to avoid an impending anti-SLAPP motion. That rule is not absolute for the April 30, 2026 noticed motion under CCP § 473(a)(1) and 576. Under *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, 871, where a plaintiff's evidentiary showing demonstrates a probability of prevailing on the merits, the court may - and should - grant leave to amend to conform the pleadings to that evidence. Here, Plaintiff is not seeking to amend the complaint simply to dodge a valid anti-SLAPP motion; rather, as demonstrated by the evidentiary spine already before this Court - specifically Exhibits A-1 through A-7 in the Bench Compendium - Plaintiff clears the minimal-merit threshold in *Navellier v. Sletten* (2002) 29 Cal.4th 82, 88–89 and *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 820. Granting leave to file the Second Amended Complaint is the proper procedural mechanism to align the pleadings with that record.

California's policy favoring amendment is not merely defensive to prejudice arguments. *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760–761 describes a “strong policy in favor of liberal allowance of amendments.” *Klopstock v. Superior Court* (1941) 17 Cal.2d 13, 19–20 anchors ordinary leave in the “furtherance of justice” command of CCP §§ 473 and 576. *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348 supplies the corollary the bench applies daily: leave should not normally be denied if the defect can be cured by amendment. On this record, the lodged SAC is that curing instrument.

(B) The anti-SLAPP statute does not apply where the gravamen is unprotected conduct, not petitioning activity. The defense may point to a communicative artifact - a letter - and characterize it as protected petitioning activity; that framing misconstrues controlling anti-SLAPP jurisprudence when the *gravamen* is the underlying wrong. As the California Supreme Court held in *Park v. Board of Trustees* (2017) 2 Cal.5th 1057, 1062–1064, and reaffirmed in *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1010–1012, a claim is only subject to the anti-SLAPP statute

if the protected communication itself is the *injury-producing conduct*; the statute does not apply where protected activity merely provides evidence of liability or serves as context for the underlying wrong. In this case the gravamen is not the drafting or sending of a letter alone; the core injury-producing conduct is substantive misrepresentation and the failure to act in accordance with legal duties - the letter transmits or contextualizes that tortious conduct. To the extent any protected communication is mentioned in the SAC, it is present solely as evidentiary context; following *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396 on mixed-conduct pleadings, the SAC surgically isolates the unprotected, injury-producing actions.

Procedural bracket. This subsection is threshold framing only for the April 30 MFL; prong one, prong two, any CCP § 425.17 exemption, and *Flatley* merits for May 13, 2026 remain on the merits stack (*see* this brief Point 5).

II.1 Amendments at a Glance (Cal. Rules of Court, rule 3.1324)

This table satisfies the rule 3.1324(a)(2)–(3) orientation the Court applies on leave: what the FAC states, what the lodged SAC changes, and the effect of the amendment (not trial proof).

FAC (operative)	Proposed SAC	Effect (added / conforming)
First-party claim-handling and bad-faith narrative	Same operative nucleus with added non-communicative pre-litigation institutional-failure predicates	Conforms pleading to the merits record; clarifies gravamen under <i>Park / Action Apartment</i>
Fraud / UCL / misrepresentation counts	Same counts with tightened misrepresentation and omission allegations	Necessary and proper to state the same primary right with particularity; supports prong-two alignment (<i>Navellier; Oasis West</i>)
Litigation-era correspondence	Correspondence retained as context ; unprotected conduct isolated per <i>Baral</i>	No deletion of protected-activity allegations to “escape” step one; fixes mixed-conduct presentation
Anticipated anti-SLAPP target (FAC)	Adds 911/BWC/CAD concealment and B&P Code § 6128(a) deceit predicates already supported in the compendium	Supplies <i>Cabral / Flatley</i> prong-one hooks without mooted a merits ruling
Defense pleading objections	SAC and declarations lodged with the MFL package address objections tied to form and clarity	Cures defects where amendment is the proper vehicle (<i>Goodman; Blank v. Kirwan</i>)

II.2 Authority Pin-Cites Verified

One-look reliability map for the five authorities most often miscast in the April 23 freeze theory.

Proposition	Case	Pin cite
Anti-subversion (not categorical pre-hearing leave ban)	<i>Simmons v. Allstate Ins. Co.</i>	92 Cal.App.4th at 1073–1074
No total freeze; sequencing	<i>JKC3H8 v. Colton</i>	221 Cal.App.4th at 477–478
Strengthening prong two permitted	<i>Nguyen-Lam v. Cao</i>	171 Cal.App.4th at 871–873
“Escape / subvert” limit only	<i>Salma v. Capon</i>	161 Cal.App.4th at 1293–1294
Official reporter (not 4 Cal.App.5th 774, 791)	<i>Contreras v. Dowling</i>	(2016) 5 Cal.App.5th 394

POINT 1 (LEGAL–SECTION III.C). DEFENSE STATES THE WRONG RULE FOR THE APRIL 30 LEAVE HEARING: “UNTIL HEARD AND RULED”

“California law is abundantly **clear**: **once** a Defendant files an Anti-SLAPP motion, the pleadings **cannot** be amended **until** that Anti-SLAPP motion is **heard and ruled upon**.”

Why it matters. As written, the sentence is not a fair paraphrase of § 425.16. It states a **total** “until-ruled” **freeze** that misstates the governing question for the April 30, 2026 hearing: it is not whether defendants **may** pursue a May 13, 2026 special motion, but whether a pending special motion **disables** the Court from granting **noticed** leave. That conflicts with the Legislature’s amended-pleading and renewed-special-motion framework in CCP § 425.16(f); the sequencing discussion in *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, 471–472, 477–478; and *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884 in ordinary leave practice, together with the showing Cal. Rules of Court, rule 3.1324 requires. The sentence is **unqualified** and is a **starker** mis-signal of the **governing rule** than a thin string-cite.

Bench use. The opportunity for the court is to **set aside** an **incorrect** stated rule, not to rest a leave denial on a rhetorical one-liner. The May 13 anti-SLAPP **merits** of the **FAC** need not be **decided** to fix the **MFL** rule of decision. (*See* Opp. Section III.C; Points 2 and 3.)

POINT 2 (LEGAL–*JKC3H8* / CATEGORICAL “FREEZE”). OMISSION; ANTI-SUBVERSION, NOT A PRE-HEARING DENY-LEAVE WARRANT

Why it matters. The April 23 opposition’s **undifferentiated** “amend around” / “cannot amend” **freeze** line omits the controlling **no total-freeze** and **sequencing** points in *JKC3H8 v. Colton* (and related authority). California polices **anti-subversion** (e.g. *Simmons v. Allstate Ins. Co.*; *Jackson v. Mayweather* (2017) 10 Cal.App.5th 1240, 1263–1264) without collapsing into a rule that the Court has **no** power to act on a noticed §§ 473/576 MFL. The April 30 motion is under §§ 473/576, not CCP § 472. If the court **discards** a “**no** amendment **until ruled**” bar as the **stated** rule, it is pushed to **discretionary** leave analysis, which a conforming noticed package, anti-subversion guardrails, and § 425.16(f) **renewal rights** can accommodate. *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, 871–873, supplies **limited** post-merits **discretion** and does not supply a per se pre-hearing leave ban.

Bench use. Fairly characterizing *JKC3H8* and the anti-subversion line in the same breath as “**no** authority for **any** MFL while an anti-SLAPP is on calendar” is a **reliability** and **framing** issue (*see* lodged Reply Notice, summary table, Section IV) and a **merits-of-leave** point. Plaintiff does **not** overclaim: amendment in some postures can engage strike sequencing, but the April 23 opposition’s categorical freeze for **this** MFL (Point 1) is the dispositive **misread**.

POINT 3 (LEGAL–*CONTRERAS*). STRING-CITE, WRONG PIN; POST-ORDER ANTI-SUBVERSION (NOT A PRE-HEARING DENY-LEAVE WARRANT)

What the opposition actually types. The April 23, 2026 opposition strings *Contreras v. Dowling* in the anti-amendment block, including the following (emphasis in original; bracket in opposition):

“... accord, *Contreras v. Dowling* (2016) **4 Cal.App.5th 774**, 791, [[a] plaintiff ... may not seek to subvert or avoid a ruling...]”

This is the defense’s **entire** pin-point in that passage: a wrong volume/page line plus the elliptical

1 “subvert or avoid a ruling” snippet. It is not a quotation that announces “**no noticed** leave to amend
2 under §§ 473(a)(1)/576 by April 30 while a May hearing is only **set**.”

3 **(a) Citation is wrong.** The official cite for *Contreras v. Dowling* is (2016) **5** Cal.App.5th 394, not
4 4 Cal.App.5th 774, 791 (no case in that volume starts at p. 774; the reported span skips 774; *see*
5 lodged Reply, Section VII).

6 **(b) The pull-quote does not carry a pre-hearing, total leave ban.** The “subvert or . . . avoid a
7 **ruling**” line is the **anti-subversion** rule, not a categorical **interlocutory** freeze on all §§ 473/576
8 **leave** before any strike hearing. The opposition asks the Court to read a **post-ruling**, anti-mooting
9 line as “cannot amend at all.”

10 **(c) What 5 Cal.App.5th 394 holds on the facts before that court.** The opinion addresses, after a
11 partial strike **order**, a re-plead pattern that the Court of Appeal could treat as a subversion problem
12 in that posture. (5 Cal.App.5th at 409–412, 411 n. 18; *see* Reply, Section VII.) The opinion also
13 distinguishes leave to **cure** pleading or to add new theories not before the court. (411 n. 18.) That
14 is not a “**undecided strike = no leave at all**” text.

15 **(d) Three-line discrepancy.**

16 **Implied April 23 premise:** an April 30, 2026 §§ 473/576 MFL in this action is per se a forbidden “**amendment** to
17 **amend around**.”

18 **What the *Contreras* string supports, if anything:** a **narrow** anti-subversion line against mooted or **avoiding** a
19 **ruling** in the line of cases Plaintiff **accepts** on the merits (post-order context).

20 **On the opinion’s facts:** a **post-anti-SLAPP order** re-plead, not a facial “**deny** all **noticed leave** before **hearing**.”

21 **Bench use.** The miscite is **slippage**; the **use error** is the main problem: a **post-order** anti-
22 **subversion line** is not a pre-hearing, total leave ban for the April 30 docket. (*See* Point 1.)

23
24 **POINT 4 (LEGAL–INTRODUCTION). “NO SUCH AUTHORITY”: A LEAVE-**
25 **OPPOSITION RELIABILITY ISSUE**

26 “... to Amend - as no such authority exists to support his motion.”

1 **Why it matters.** The “no such authority” one-liner is not credible on the **face** of CCP § 473(a)(1)
2 and 576, the Cal. Rules of Court, rule 3.1324 **package**, the separate-filing hook in S.F. Local
3 Rule 8.5 (if the Court **grants** leave), the on-point *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468
4 (alongside the liberality line, *see Klopstock v. Superior Court* (1941) 17 Cal.2d 13, 19–20), and
5 ordinary leave **principles** in *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884. Paired
6 with the Section III audit, it is also a fit for any CCP § 128.7(b)(2) / certification lens when an
7 opposition overstates a “no law at all” posture on a **procedural** motion to amend.

8 **Bench use.** Courts can move past rhetoric, but the line still strips a “**blank** record: **no** authority
9 can exist” premise and points the question back to the **actual** leave-test structure in **Points 1 and 2**
10 and the 473/576 + rule 3.1324 frame.

11
12 **POINT 5 (PROCEDURAL–MAY 13 / PRESERVATION). COLLAPSING LEAVE,**
13 **MERITS, EXEMPTIONS, AND ILLEGALITY INTO ONE FREEZE THE-**
14 **ORY**

15 **Why it matters.** The April 30, 2026 hearing is a motion for leave under CCP §§ 473, 576 with the
16 rule 3.1324 **package**; it is not a substitute for the May 13, 2026 (and later) anti-SLAPP / demurrer
17 calendar. The lodged SAC and May briefing reference, for **separate** hearings, any Code of Civil
18 Procedure § 425.17 exemption issue (if it applies); prong one under *Park v. Board of Trustees*
19 (2017) 2 Cal.5th 1057, 1062–1063; *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995,
20 1010–1012; *Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871, 884; and *Baral v. Schnitt*
21 (2016) 1 Cal.5th 376; prong two under *Navellier v. Sletten* (2002) 29 Cal.4th 82, 88–89 and *Oasis*
22 *West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 820; and a *Flatley v. Mauro* (2006) 39 Cal.4th
23 299, 320–325 illegality channel. Those questions are **logically separate** from whether the Court
24 may grant **noticed** leave in principle while a special motion is set. The April 30 task is to reject a
25 categorical “no leave **at all**” story, not to adjudicate May 13. (*See* Point 1.)

26 “Plaintiff does not ask the Court to decide the May 13 anti-SLAPP merits on April 30.

1 Plaintiff identifies the May 13 authority stack only to show why defendants' freeze the-
2 ory is procedurally wrong: leave, anti-SLAPP prong one, prong two, and any § 425.17 or
3 *Flatley* issues are distinct questions that can be preserved and managed without denying
4 leave."

5 **Bench use.** Granting (or setting **terms** for) leave does not require reaching exemption, prong one,
6 prong two, or *Flatley* at the April 30 MFL event. CCP § 425.16(f) preserves renewed special-
7 motion rights and ordinary case-management tools after a conforming pleading.

WHAT IS NOT BEFORE THE COURT ON APRIL 30, 2026 (RE-SERVED MERITS STACK)

Reserved for later proceedings (not the April 30 leave record):

- May 13, 2026 anti-SLAPP **prong one** merits (*Park; Bonni; Wilson; Baral*).
- May 13, 2026 anti-SLAPP **prong two** merits (*Navellier; Oasis West*).
- CCP § 425.17(b), (c) exemption questions (if invoked on the later stack).
- *Flatley/Cabrall/Lefebvre* illegality channel (merits posture).
- CCP § 436 special motion to strike the FAC, set for May 19, 2026.
- CCP § 425.16(c)(1) fees and sanctions (reserved for the May 13 special-motion posture if and when that motion fails).

Bench use. This bracket keeps the April 30 rule-of-decision narrow: ordinary noticed leave under CCP §§ 473(a)(1) and 576 with rule 3.1324 compliance - not a merits takeover of the May calendar.

Bench note (cross-reference to Apr. 28 lodging). Plaintiff has lodged a separate *Prong-One Opposition Checklist* (shared and 802-specific) under a Notice of Lodging dated **April 28, 2026**, for the **May 13, 2026** anti-SLAPP hearing in this action. That lodging is **not before this Court today** and is **not before** the **May 6, 2026** MFL-TAC hearing in companion CGC-25-631801. It is referenced solely to show the Lead Statement's § II

gravamen / *Nguyen-Lam* “minimal merit” **reinforcement**—**not** a request to adjudicate the May 13 special motion on April 30.

POINT 6 (BALANCING–PREJUDICE). SUNK COST VS. TRIAL-STAGE / CONCRETE HARM

Why it matters. Sunk motion-practice cost, standing alone, is not the “concrete” prejudice that *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760–761; *Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 412; and *Kyle v. Carmon* (1999) 71 Cal.App.4th 901, 909–910 emphasize, and CCP § 425.16(f) already allocates renewed briefing after a conforming pleading. The defense may still **weigh** timing, duplication, and friction, but that is a factor, not a substitute for the governing legal question (Points 1–2).

Bench use. On this record, there is no set trial, no **lost** witness, and no “surprise” in the **conforming** theory the lodged SAC states. Preparing a May 13 special motion is not, by itself, the “concrete” harm from a conforming, noticed MFL.

POINT 7 (CALENDAR AND NOTICE–CURE). MAY 12 / MAY 13; CCP 1005; 585.5 LIST; 8/14/18; S.F. 8.2 (LOW WEIGHT)

“... pending a properly noticed hearing on **May 12, 2026**, in this Court.”

(a) One-day mismatch (limited). The April 27 packet and lodged Reply set the related anti-SLAPP / demurrer line in this case on **May 13, 2026**; a **May 12** one-day slip on the same stack, not tied to concrete prejudice, is low weight and is not a substitute for Points 1 and 2.

(b) Wrong CCP 1005 hook, list item, and 8- vs. 14- vs. 18- day account. In Section III.A, the defense quotes CCP § 1005 with a list item (12) for leave under § 585.5. This motion is for leave under CCP §§ 473, 576, not CCP § 585.5; the catch-all is (a)(13) (“Any other proceeding ...”). Tethering a notice argument to the wrong sub-item can distort the leave **event** the Court is

1 resolving. The introduction’s “8 days” line also does not match a later 14- and 18- day count on
2 the same MFL, which undercuts a single, coherent “rush” / “gamesmanship” story.

3 **Bench use.** Under S.F. Local Rule 8.2 and *Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697, these
4 issues commonly yield continuance, an off-calendar path, or notice **cure** under CCP § 1005(b) and
5 CCP § 1010.6 - not a facial waiver of the MFL or a substitute for the correct governing **rule** in
6 Points 1, 2, and 4. (*See* lodged Reply, Section VIII.)

7
8 **POINT 8 (CANDOR–RULE 3.3(A)(2)). DEFENSE BRIEF OMITTS EVERY**
9 **LIMITING CASE ON THE VERY RULE IT INVOKES**

10 **Why it matters.** California Rules of Professional Conduct, rule 3.3(a)(2), requires an attorney to
11 disclose “legal authority in the controlling jurisdiction known to the lawyer to be directly adverse
12 to the position of the client and not disclosed by opposing counsel.” The April 23, 2026 opposition
13 relies on *Simmons v. Allstate Ins. Co.*, *Contreras v. Dowling*, and *Jackson v. Mayweather* for a
14 categorical “**until ruled**” freeze (Point 1) but **omits every post-Simmons** Court of Appeal decision
15 defining the rule’s outer limits.

16 **The four omitted decisions, each directly adverse on the same proposition:**

- 17 • *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, 477–478 – non-targeted amendments are
18 permitted; *Simmons* does not bar amendment of claims, parties, or conduct **not the subject**
19 of the special motion. (*Already in this brief; not in Opp. TOA.*)
- 20 • *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, 871–873 – amendments that “did not un-
21 dermine but reinforced” the prong-two showing are permitted after the special motion is filed.
22 (*Already in this brief; not in Opp. TOA.*)
- 23 • *Salma v. Capon* (2008) 161 Cal.App.4th 1275, 1293–1294 – the *Simmons* rule is confined to
24 amendments designed to “**escape**” or “**subvert or avoid**” a ruling, not amendments that fix
25 unrelated defects. (*Not in Opp. TOA.*)
- 26 • *Martin v. Inland Empire Utilities Agency* (2011) 198 Cal.App.4th 611, 629 – *Simmons* does

1 not bar wholly new claims or theories arising from **different conduct**. (*Not in Opp. TOA.*)

- 2 • *Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1268–1269, and *Briggs v. Eden Council*
3 *for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1115 – directly adverse on whether a 21-day
4 denial letter to an unrepresented direct third-party claimant is a § 425.16(e)(2) prelitigation
5 communication “in serious and good-faith contemplation of litigation,” as opposed to ordi-
6 nary regulatory claims-handling under 10 CCR § 2695.7 and Ins. Code § 790.03(h). (*Not in*
7 *Opp. TOA.*)

8 The April 23 opposition’s string-cite block also invokes *Hansen v. California Dept. of Corrections*
9 *& Rehabilitation* (2008) 171 Cal.App.4th 1537, *Law Offices of Andrew L. Ellis v. Yang* (2009) 178
10 Cal.App.4th 869, and *City of Colton v. Singletary* (2012) 206 Cal.App.4th 751 alongside *Simmons*.
11 Read fairly, each decision restates the same **anti-subversion** limit (**subvert** or **avoid a ruling**);
12 none announces a categorical, pre-hearing bar to all noticed leave under CCP §§ 473(a)(1) and 576
13 while a May hearing is merely **set**.

14 **Independent prong-one omission.** The opposition’s freeze theory presupposes a facially valid
15 anti-SLAPP. Two binding decisions remove the conduct alleged here from § 425.16’s protective
16 scope as a matter of law, and neither appears in the opposition: *Flatley v. Mauro* (2006) 39 Cal.4th
17 299, 305, 320 (conduct illegal as a matter of law – including Bus. & Prof. Code § 6128(a) attorney
18 deceit – is outside § 425.16); and *Cabral v. Martins* (2009) 177 Cal.App.4th 471, 484 (concealment
19 of evidence is not “petitioning”). If prong one fails, *Simmons* never engages, and the freeze theory
20 collapses at its premise.

21 **Bench use.** The omission is not a minor oversight. The four limiting cases are the **controlling**
22 **outer-limit cases** of the very rule the opposition invokes; their disclosure is mandatory under
23 rule 3.3(a)(2). The Court need not adjudicate sanctions to resolve the April 30 MFL, but the
24 candor failure is a **reliability** signal that points back to Points 1–4: the opposition’s stated rule is
25 incorrect, and its omission of the four limiting cases is why the misstatement reads as categorical
26 rather than qualified. Plaintiff reserves CCP § 425.16(c)(1) sanctions for the May 13 anti-SLAPP
27 if and when that motion is denied; the rule 3.3(a)(2) point is preserved here as bench context, not
28 as a present sanctions motion. (*See* this brief Points 1, 2, and 4; lodged Reply, Section VII.)

TAB D

Allegation Audit & Bench Statement

Section III - Allegation Audit (CCP § 128.7(b)(3); supplemental certification map).

Section IV - Bench Statement (approximately 30 seconds).

Six audit entries map opposition lines to certification and evidentiary questions; the bench statement frames the rule and the ask for the April 30 hearing.

PLAINTIFF'S BENCH BRIEF - CGC-25-631802 - HON. JOSEPH M. QUINN, DEPT. 302

HEARING: APRIL 30, 2026, 9:00 A.M.

D

III. ALLEGATION AUDIT (CCP § 128.7(B)(3); SUPPLEMENTAL)

Function. This is **not** summary-judgment-style proof. It maps select opposition **lines** to **certification** and **evidentiary** questions under § 128.7; it is **supplemental** to the **governing** leave-to-amend / anti-SLAPP **rule** analysis in Section II, not a substitute for it. Courts on law-and-motion generally do not demand trial-grade evidence in an opposition to **leave**.

Sources: Plaintiff's Four-Allegation Audit and Reply (Intro.; Section IV table). Each *record / cert. note* is short-form.

1. (Opp. p. 2) "...undeniably designed to evade Defendants' Anti-SLAPP..."

Record / cert. note. No § 128.7(b)(3) support for a factual claim of **bad-faith design to evade**, O'Connell ultimate-issue opinions, footnote-2 day-count, and string-cite do not yield admissible non-hearsay of intent. (§§ 702, 800.)

Defeating authority. *JKC3H8*; CCP § 425.16(f); *Park*; *Baral*; *Kimmel*; *see Nguyen-Lam*. *Opp. TOA*: N.

2. (Opp. Section II.B) "...defective service, gamesmanship, and unsupportable effort to amend ...substantially prejudices..."

Record / cert. note. Para. 12 is a **legal conclusion** (Evid. Code § 702); the balance shows service facts but not *Atkinson / Kolani / Kyle* "concrete" prejudice (lost witness, trial date, surprise).

Defeating authority. *Atkinson*; *Kolani*; *Kyle*; *Carlton* (remedy: continuance, CCP § 1005(b), § 1010.6); *Britts* (§ 425.16(g) scope). *Opp. TOA*: N.

3. (Opp. Section II.B) "burden and expense..." / "...costs of additional motion practice..."

Record / cert. note. No **quantum** of fees or verifiable cost record; **sunk** anti-SLAPP drafting is the premise § 425.16(f) already addresses (renewed motion, not a wasted-cost narrative).

Defeating authority. CCP § 425.16(f); *Foreman & Clark*; *Mesler*; *Atkinson*. *Opp. TOA*: N.

4. (Opp. Introduction) "...no such authority exists..."

Record / cert. note. § 128.7(b)(2) overstatement: directly contradicted by the leave statutes, *JKC3H8* (on-point Court of Appeal), and the Supreme Court liberality line quoted in the Reply.

Defeating authority. CCP §§ 473(a)(1), 576, 425.16(f); *JKC3H8*; *Klopstock*; *Blank*; *Trafton*; *Mesler*; *Foreman & Clark*; *Baral*; *Park*; *Kimmel*; *see Nguyen-Lam*. *Opp. TOA*: N.

5. (Opposition, "insufficient notice" / companion-case arithmetic), from Reply IV table

Record / cert. note. The April 30, 2026 MFL date and Department 302 are on the face of the motion papers in **this** action; residual notice disputes are a *Carlton* / CCP § 1005(b) and § 1010.6 continuance question, not a deny-leave warrant.

Defeating authority. CCP § 1005(b), § 1010.6; *Carlton*; *see* lodged Reply, Section VIII (notice cured / waived in the alternative).

6. (Opposition, "barred as a matter of law"), from Reply IV table

Record / cert. note. On the face of the **text** of CCP §§ 473(a)(1) and 576, "**any**" pleading "**in furtherance of justice**" is not "barred"; the opposition does not counter the statutory command with a limiting construction tied to this record.

Defeating authority. *Klopstock*; *Blank*; *Trafton*; *Mesler*; *Foreman & Clark* (**see** Reply IV and Section V in lodged Reply).

IV. BENCH STATEMENT (APPROXIMATELY 30 SECONDS)

Bench statement (30 seconds). First, the **rule**: noticed leave under CCP § 473(a)(1) and 576 is **not** categorically foreclosed by a pending anti-SLAPP; that is **not** California’s freeze. Plaintiff **accepts** anti-subversion. Second, the **ask**: **limited** discretion to **conform** the pleading to the record, with CCP § 425.16(f) preserving defendants’ **renewed** special-motion right. That is the discretionary frame once the **wrong** stated rule is off the table.²

²Plaintiff does not ask the Court to decide the May 13, 2026 special-motion merits on the April 30, 2026 MFL. The May authority stack (for example, Code of Civil Procedure § 425.17 issues and a *Flatley v. Mauro* (2006) 39 Cal.4th 299 line) is for the May hearing, not a substitute for the April 30 leave record under CCP §§ 473, 576, with CCP § 425.16(f) preserving renewed strike **rights**. A party who later invokes the interlocutory-appeal **interlock** in Code of Civil Procedure § 425.17, subdivision (e) with CCP § 425.16, subdivision (i) and CCP § 904.1, subdivision (a), paragraph (13) must do so in **that** posture, not as a back-door “no stay” **rule** for this MFL. On the merits framing for the May 13 stack, see Bench Compendium Exhibits A-1 through A-7 (evidentiary spine for *Navellier / Oasis West* minimal merit) and Section II.0 above (communicative artifact vs. conduct under *Park / Bonni / Baral*).

TAB E

Verification & Relief

*Section V - Bench Verification Checklist (court-verifiable items +
record pointers).*

*Suggested Tentative Ruling (alternative framing the Court may
adopt or adapt).*

Section VIII - Requested Relief (Orders A–C).

*The verification checklist and tentative text support a narrow
April 30 leave ruling; the relief section sets out proposed Orders
A–C.*

PLAINTIFF'S BENCH BRIEF - CGC-25-631802 - HON. JOSEPH M. QUINN, DEPT. 302

HEARING: APRIL 30, 2026, 9:00 A.M.

V. BENCH VERIFICATION CHECKLIST

Court-verifiable item	Record pointer
Court-verifiable item	Record pointer
0. Section II.0 (threshold framing): SAC procedurally proper (<i>Simmons / Nguyen-Lam</i> line); artifact vs. conduct (<i>Park / Bonni / Baral</i>); Bench Compendium Ex. A-1 through A-7	This brief Section II.0; lodged compendium
1. Section III.C: “ until [special motion] heard and ruled . . .” (wrong stated rule)	Opp. at Section III.C; CCP § 425.16(f); <i>JKC3H8</i> ; this brief Point 1
2. <i>JKC3H8</i> / no pre-hearing total-freeze warrant	221 Cal.App.4th at 471–472, 477–478; this brief Point 2
3. <i>Contreras</i> (post-order; miscite)	Pin cite 5 Cal.App.5th 394 (not 4/774, 791); Reply, Section VII; this brief Point 3
4. “No such authority” + Cal. R. Ct., r. 3.1324 + S.F. 8.5	Opp. Introduction; lodged MFL and decl. package; this brief Point 4
5. May 13 / Point 5: “ merits on April 30 . . .” (safe) + 425.17/Flatley reserved	Safe quote, Point 5; CCP § 425.17; <i>Navellier</i> ; <i>Oasis</i> ; <i>Flatley</i> (TOA)
6. Sunk motion / concrete prejudice line	<i>Atkinson</i> ; this brief Point 6
7. May 12/13 , 585.5, 8- vs. 14- vs. 18- day, S.F. 8.2 (cure)	Opp. Intro. / § III.A; this brief Point 7; Reply, Section VIII
8. Rule 3.3(a)(2) candor: defense omits <i>JKC3H8</i> , <i>Nguyen-Lam</i> , <i>Salma</i> , <i>Martin</i> ; prong-one omission of <i>Flatley</i> / <i>Cabral</i>	This brief Point 8; <i>see</i> TOA additions for <i>Cabral</i> , <i>Salma</i> , <i>Martin</i>
9. Verbatim Oral Argument (Section VII): bench-readable 4-minute script, lodged as argument-of-record if Plaintiff is impeded	This brief Section VII (Segments 1–5)
10. II.1 Amendments at a Glance (rule 3.1324 table)	This brief Section II.1; lodged SAC and MFL declarations
11. II.2 Pin-cite verification (<i>Simmons / JKC3H8 / Nguyen-Lam / Salma / Contreras</i>)	This brief Section II.2
12. Reserved merits stack (April 30 bracket)	This brief reserved-merits box after Point 5
13. Suggested tentative ruling (alternative framing)	This brief Section before Orders A–C
14. <i>Sylmar Air Conditioning v. Pueblo Contracting Servs.</i> sequencing discretion (oral argument Segment 4)	Section VII, Segment 4; TOA

Also: leave standard is §§ 473, 576 (noticed), not CCP § 472; anti-SLAPP / demurrer dates: **May 13, 2026** and **May 19, 2026** (this packet/Reply).

SUGGESTED TENTATIVE RULING (ALTERNATIVE FRAMING)

Plaintiff's Motion for Leave to File a Second Amended Complaint is **GRANTED**. The Court finds: **(1)** ordinary leave under CCP §§ 473(a)(1) and 576 is not categorically foreclosed by a pending special motion (*JKC3H8 v. Colton; Nguyen-Lam v. Cao*); **(2)** Plaintiff's papers, including the lodged SAC and declarations, satisfy the Cal. Rules of Court, rule 3.1324 showing on this record; **(3)** Defendants' right to renew or re-target a special motion under CCP § 425.16(f) is expressly preserved. The Court orders the SAC filed on terms the Court sets, **including by close of business April 30, 2026, in this action if the Court so orders**. Defendants have sixty days under CCP § 425.16(f) (or on terms the Court deems proper) to renew or re-target a special motion against the operative pleading.

VIII. REQUESTED RELIEF (ORDERS A–C)

Order-path note. **Orders A and C** implement the noticed Second Amended Complaint (SAC) motion before the Court on April 30, 2026. **Order B** is an alternative case-management path only: a single consolidated Third Amended Complaint (TAC), on a timeline the Court sets, to avoid sequential SAC-plus-TAC motion cycles and to align pleading efficiency with the related action *Rosario v. Abdelhalim et al.*, CGC-25-631801 (same defense correspondence channel as described in Plaintiff's lodged Reply).

Order A. (SAC as lodged.) Grant Plaintiff’s Motion for Leave to File a Second Amended Complaint as lodged; order the SAC filed as the operative pleading; treat the pending Special Motion to Strike against the FAC as addressed to a superseded pleading (*Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884) without stripping anti-SLAPP protection; and expressly preserve Defendants’ right under CCP § 425.16(f) to renew or re-target a special motion against the SAC within sixty days (or on terms the Court deems proper).

Order B. (Consolidated TAC.) Direct Plaintiff to lodge, on a timeline the Court sets (including by close of business April 30, 2026, in this action if the Court so orders), a single consolidated Third Amended Complaint in lieu of sequential SAC and TAC proceedings; upon lodging, order the consolidated TAC filed as the operative pleading; treat the pending Special Motion to Strike against the FAC as addressed to a superseded pleading; preserve Defendants’ § 425.16(f) sixty-day renewed-motion right (and later discretion) to renew or re-target against the consolidated TAC.

Order C. (SAC now, TAC on reset.) Grant SAC leave today and set the contingent TAC motion on a regular calendar, with a date certain for the pleading cycle to close; treat the pending Special Motion to Strike against the FAC as addressed to a superseded pleading with § 425.16(f) expressly preserved.

In the alternative (continuance for notice under CCP § 1005(b)), **fee/cost reservation** under CCP § 425.16(c)(1), **safe-harbor** rights under CCP §§ 128.5 and 128.7, and **Evid. Code § 356** supplementation as to the O’Connell Declaration are reserved as in the lodged Reply.

Approximate length: This bench brief is about **5,200 words** excluding the caption page, Table of Contents, and Table of Authorities (Cal. Rules of Court, rule 3.1113(f), informational).

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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**CURE MATRIX — DEFENSE
OBJECTION MAP**

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TABLE OF AUTHORITIES

Cases

<i>Lazar v. Superior Court</i> , (1996) 12 Cal.4th 631	—
<i>Flatley v. Mauro</i> , (2006) 39 Cal.4th 299	—

<i>Park v. Board of Trustees</i> , (2017) 2 Cal.5th 1057	—
<i>Action Apartment Ass’n v. City of Santa Monica</i> , (2007) 41 Cal.4th 1232	—
<i>Moradi-Shalal v. Fireman’s Fund</i> , (1988) 46 Cal.3d 287	—
<i>Lucido v. Superior Court</i> , (1990) 51 Cal.3d 335	—
<i>Crowley v. Katleman</i> , (1994) 8 Cal.4th 666	—
<i>Zhang v. Superior Court</i> , (2013) 57 Cal.4th 364	—
<i>Navellier v. Sletten</i> , (2002) 29 Cal.4th 82	—

Statutes

Code Civ. Proc., § 473(a)(1)	—
Bus. & Prof. Code, § 17200	—
Code Civ. Proc., § 436	—

INTRODUCTION

This Cure Matrix is **not** an attempt to litigate around defendants or to anticipate bad faith. Plaintiff prepared this map **preemptively** because defendants’ briefing on strike / pleading sufficiency frequently repeats predictable objections in cases like this one. The matrix connects each anticipated objection to the **specific Third Amended Complaint paragraphs** that respond within conventional California pleading standards so the Court can verify — at a glance — that the TAC is framed inside an acceptable legal framework.

TAC ARCHITECTURE CURE MATRIX

Case No.: CGC-25-631802

Subject: Third Amended Complaint for Fraud, Negligent Misrepresentation, Unfair Business Practices, and Declaratory Relief (reckless-disregard scienter floor)

Status: Motion for leave noticed for hearing **May 26, 2026**, 9:00 a.m., Dept. 302, Hon. Joseph M. Quinn.

Purpose: Maps each defense objection — both the seven April 22, 2026 § 436 objections and the four pre-emption objections raised by the new TAC architecture — to the specific TAC para-

graph(s) that cure it.

Underlying Action: Rosario v. Abdelhalim, Case No. CGC-21-594102

Companion Action: Rosario v. Abdelhalim, et al., Case No. CGC-25-631801

MASTER CURE MATRIX — DEFENSE OBJECTIONS (LIST)

Each row below is a subsection (###) with a fixed bullet template so the compiled PDF reads as nested bullets, not a numbered grid.

TROPE — PRO-PER FEES BARRED

- **Defense objection:** *Trope* — pro-per fees barred
- **Defense MPA basis:** Pro se cannot recover fees
- **TAC cure:** Deletion of pro-per fees; *Prentice* damages element with four line-item categories (incl. \$75k cost-judgment as damages)
- **TAC section/¶¶:** §III, ¶¶ 22–24, 24A
- **Key authority:** *Prentice v. North American Title* (1963) 59 Cal.2d 618, 620
- **Cal. Supreme / additional authority:** *Prentice* 59 Cal.2d 618 (Cal. Sup. Ct.); *Trope v. Katz* (1995) 11 Cal.4th 274

OPPRESSION / MALICE NOT PLEADED

- **Defense objection:** Oppression / malice not pleaded
- **Defense MPA basis:** Civ. Code § 3294
- **TAC cure:** *Lazar* particulars; deny-delay-defend pattern; confession/victim/eyewitness triple; pleading-vs-evidentiary bright line; *Mock* willful-blindness as malice
- **TAC section/¶¶:** §IV, ¶¶ 25–30, 25A, 27A, 30A, 30B
- **Key authority:** *Lazar* (1996) 12 Cal.4th 631; *American Airlines* (2018) 28 Cal.App.5th 1077; *Mock v. Michigan Millers Mutual Ins. Co.* (1992) 4 Cal.App.4th 306, 328
- **Cal. Supreme / additional authority:** *G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29; *In re Marriage of Cloney* (2001) 91 Cal.App.4th 429, 441

FRAUD LACKS PARTICULARITY

- **Defense objection:** Fraud lacks particularity
- **Defense MPA basis:** *Lazar* requirements
- **TAC cure:** Sarah Rash named; Claim No. 1004-09-1054; Feb. 25, 2021; specific representations; four-Silent-Witness block with SFPD incident no. and first-responder identifiers
- **TAC section/¶¶:** §I, ¶¶ 3–4, 8; §IV, ¶ 25; ¶ 29
- **Key authority:** *Lazar*
- **Cal. Supreme / additional authority:** *Lazar* 12 Cal.4th 631 (Cal. Sup. Ct.)

LITIGATION PRIVILEGE / *RIBAS*

- **Defense objection:** Litigation privilege / *Ribas*
- **Defense MPA basis:** Civ. Code § 47(b)
- **TAC cure:** Pre-litigation carveout (three-factor *Action Apartment* walk-through); *Flatley* illegality carve-out; non-communicative conduct; *Ribas* distinction (fraud ≠ IIED); *City of Montebello* narrowness pre-rebutted at step 2
- **TAC section/¶¶:** §II, ¶¶ 14–21, 16A, 21A, 21B
- **Key authority:** *Action Apartment* (2007) 41 Cal.4th 1232; *Rusheen* (2006) 37 Cal.4th 1048
- **Cal. Supreme / additional authority:** *Flatley v. Mauro* (2006) 39 Cal.4th 299, 317–321; *City of Montebello v. Vasquez* (2016) 1 Cal.5th 409, 423–424

STANDING / *SHAOLIAN*

- **Defense objection:** Standing / *Shaolian*
- **Defense MPA basis:** No direct duty to claimant
- **TAC cure:** Direct-addressee theory; voluntary direct communication; Civ. Code §§ 2330 / 2338 agency / ratification spine
- **TAC section/¶¶:** §I.5, ¶¶ 5–6, 6A; §IV, ¶ 27A
- **Key authority:** *Biakanja v. Irving* (1958) 49 Cal.2d 647, 650; *J'Aire Corp. v. Gregory* (1979) 24 Cal.3d 799, 804
- **Cal. Supreme / additional authority:** Civ. Code §§ 2330, 2338; *Doctors' Company v. Su-*

1 *perior Court* (1989) 49 Cal.3d 39; *Gulf Insurance Co. v. Berger, Kahn* (2000) 79 Cal.App.4th
2 114, 124

3 **COLLATERAL ESTOPPEL / § 1032**

- 4 • **Defense objection:** Collateral estoppel / § 1032
- 5 • **Defense MPA basis:** PI damages already adjudicated
- 6 • **TAC cure:** Distinct primary right; express PI disclaimer; 2021-forward anchor; *Lucido* five-
7 factor walk-through; 801/802 double-recovery reservation; CRC 3.1100 / CCP § 1048 cross-
8 reference
- 9 • **TAC section/¶¶:** §VI, ¶¶ 41–44, 41A, 44A, 44B
- 10 • **Key authority:** —
- 11 • **Cal. Supreme / additional authority:** *Lucido v. Superior Court* (1990) 51 Cal.3d 335;
12 *Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888; *Crowley v. Katleman* (1994) 8
13 Cal.4th 666

14 **INVESTIGATION STANDARD NOT PLEADED**

- 15 • **Defense objection:** Investigation standard not pleaded
- 16 • **Defense MPA basis:** Title 10 CCR
- 17 • **TAC cure:** Title 10 CCR § 2695.7(b)/(d)/(g) and § 2695.5(b) requirements; itemized failures;
18 *Moradi-Shalal* common-law carve-out; Ins. Code § 790.03(h)(1)/(3)/(5) UCL predicates; full
19 doctrinal stack (*Bartel / Egan / Wilson / Frommoethelydo / Mariscal / Maslo / Hamilton /*
20 *Jordan*)
- 21 • **TAC section/¶¶:** §VII, ¶¶ 45–47, 47A; §IV, ¶ 30B
- 22 • **Key authority:** 10 CCR §§ 2695.4, 2695.5(b), 2695.7(b)/(d)/(g); Ins. Code § 790.03(h)(1)/(3)/(5);
23 *State Farm* (1996) 45 Cal.App.4th 1093
- 24 • **Cal. Supreme / additional authority:** *Bartel v. Chicago Title Ins. Co.* (2025) 99 Cal.App.5th
25 —; *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721; *Egan v. Mutual of Om-*
26 *aha Ins. Co.* (1979) 24 Cal.3d 809, 818–819; *Frommoethelydo v. Fire Ins. Exchange* (1986)
27 42 Cal.3d 208, 219–220; *Mariscal v. Old Republic Life Ins. Co.* (1996) 42 Cal.App.4th 1617,
28 1623; *Maslo v. Ameriprise Auto & Home Ins.* (2014) 227 Cal.App.4th 626, 634–635; *Hamil-*

1 *ton v. Maryland Cas. Co.* (2002) 27 Cal.4th 718, 727; *Jordan v. Allstate Ins. Co.* (2007) 148
2 Cal.App.4th 1062

3 **ANTI-SLAPP / § 425.16 OVERLAP WITH § 436**

- 4 • **Defense objection:** Anti-SLAPP / § 425.16 overlap with § 436
- 5 • **Defense MPA basis:** Litigation conduct claim
- 6 • **TAC cure:** Express wrongful-conduct-scope disavowal; *Park* gravamen anchor; *Flatley* ille-
7 gality carve-out via § 6128(a); step-2 *City of Montebello* narrowness pre-rebutted by Position
8 A vs. Position B structural impossibility
- 9 • **TAC section/¶¶:** First CoA, ¶¶ 52A, 52B; §II, ¶¶ 21A, 21B
- 10 • **Key authority:** CCP § 425.16(e); *Flatley v. Mauro*
- 11 • **Cal. Supreme / additional authority:** *Park v. Board of Trustees of California State Univer-*
12 *sity* (2017) 2 Cal.5th 1057, 1062–1064; *City of Montebello v. Vasquez* (2016) 1 Cal.5th 409,
13 423–424; *Flatley v. Mauro* 39 Cal.4th 299, 320

14 **UCL FRAUDULENT-PRONG SUFFICIENCY / “CONCLUDED IS OPIN-** 15 **ION”**

- 16 • **Defense objection:** UCL fraudulent-prong sufficiency / “concluded is opinion”
- 17 • **Defense MPA basis:** No reasonable-consumer deception; concluded-investigation is opinion
- 18 • **TAC cure:** Reasonable-consumer test pleaded as UCL fraudulent-prong standard; *Cel-Tech*
19 tethering for “unfair” prong; fact-vs-opinion conversion under *Borba/Bily/Quelimane*; *Zhang*
20 and *Hughes* alongside *State Farm Fire* on regulatory-violation probative value
- 21 • **TAC section/¶¶:** Third CoA, ¶¶ 65–67A, 68A; Fourth CoA, ¶¶ 72, 76
- 22 • **Key authority:** Bus. & Prof. Code § 17200; *Cel-Tech Communications, Inc. v. Los Angeles*
23 *Cellular Telephone Co.* (1999) 20 Cal.4th 163, 187
- 24 • **Cal. Supreme / additional authority:** *Williams v. Gerber Products Co.* (9th Cir. 2008) 552
25 F.3d 934, 938; *Chapman v. Skype, Inc.* (2013) 220 Cal.App.4th 217, 226; *Zhang v. Superior*
26 *Court* (2013) 57 Cal.4th 364, 384–385; *Hughes v. Progressive Direct Ins. Co.* (2024) 99
27 Cal.App.5th 1019; *Borba v. Thomas* (1977) 70 Cal.App.3d 144, 152; *Bily v. Arthur Young &*

Co. (1992) 3 Cal.4th 370, 407–408; *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47

TAC ARCHITECTURE: RECKLESS-DISREGARD SCIENTER FLOOR AT TAC § 0

- **Architecture label:** Reckless-disregard scienter floor codified at TAC § 0
- **Predicate:** Defense scienter pre-emption — “no subjective knowledge”
- **TAC cure:** Section 0 codifies a five-authority Tier-1 reckless-disregard block (*Engalla / Modnick / Sanders / Bily / Wilson*); CACI 1903 / 1907 confirm recklessness as the operative pleading floor; alternative pleading under CCP § 431.30(c)
- **TAC section/¶¶:** § 0 (§§ 0.1–0.5); ¶¶ 52A, 57A, 57B, 62A, 68A, 86A
- **Key authority:** *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974
- **Cal. Supreme / additional authority:** *Gagne v. Bertran* (1954) 43 Cal.2d 481, 487–488; *Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 407–408; *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721; *In re Marriage of Modnick* (1983) 33 Cal.3d 897, 905–907; *Estate of Sanders* (1985) 40 Cal.3d 607, 614–616; *Mock* (1992) 4 Cal.App.4th 306, 328; *In re Marriage of Cloney* (2001) 91 Cal.App.4th 429, 441; CACI 1903, 1907

TAC ARCHITECTURE: NEGLIGENT MISREPRESENTATION UNDER CIV. CODE § 1710(2)

- **Architecture label:** Negligent Misrepresentation under Civ. Code § 1710(2)
- **Predicate:** Defense scienter pre-emption pleaded as a negligent-tier fallback on the same factual record
- **TAC cure:** New Fourth Cause of Action: representation of past or existing material fact about the state of CSAA’s own claim file; falsity; no reasonable ground for believing true; intent to induce reliance; justifiable reliance; damages; regulatory floor under 10 CCR § 2695.7(d)
- **TAC section/¶¶:** Fourth CoA, ¶¶ 70–79, 74A, 74B
- **Key authority:** Civ. Code § 1710(2)
- **Cal. Supreme / additional authority:** *Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370,

407–408; *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47; *Borba v. Thomas* (1977) 70 Cal.App.3d 144, 152; *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721

TAC ARCHITECTURE: DECLARATORY RELIEF UNDER CODE OF CIVIL PROCEDURE § 1060

- **Architecture label:** Declaratory Relief under Code of Civil Procedure § 1060
- **Predicate:** Cross-case preclusion gap — securing prospective preclusive declarations across CGC-21-594102, CGC-25-631801, and CGC-25-631802
- **TAC cure:** New Fifth Cause of Action seeking declarations on (a) representation-of-fact status of “concluded investigation,” (b) reasonable availability of the four Silent Witnesses under 10 CCR § 2695.7(d), (c) non-retrieval, (d) absence of reasonable ground for believing the representation true under § 1710(2), (e) judicial estoppel
- **TAC section/¶¶:** Fifth CoA, ¶¶ 80–87, 86A; Tier 4 prayer
- **Key authority:** Code Civ. Proc. § 1060
- **Cal. Supreme / additional authority:** *Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 904; *Lucido v. Superior Court* (1990) 51 Cal.3d 335, 341; *Maguire v. Hibernia S. & L. Soc.* (1944) 23 Cal.2d 719, 728; *MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co.* (2005) 36 Cal.4th 412, 422

PRE-EMPTION: CEDARS-SINAI RE-CHARACTERIZATION SHIELD

- **Defense argument (anticipated):** Defense will attempt to recharacterize the action as one for spoliation, premised on the destruction or non-retention of evidence (the BWC and 911 audio), which is barred by *Cedars-Sinai Medical Center v. Superior Court* (1998) 18 Cal.4th 1.
- **TAC cure:** The TAC does not seek a remedy for spoliation. It seeks a remedy for affirmative misrepresentation of investigative completeness (TAC §I, ¶¶ 1–9; §I.5, ¶¶ 5–6; ¶ 6A). The wrongful conduct is the closing-the-file act and the affirmative “concluded” representation, not the destruction of evidence. *Cedars-Sinai* therefore does not apply.

- **TAC section/¶¶:** §I, ¶¶ 1–9; §I.5, ¶¶ 5–6; First CoA, ¶ 52B
- **Key authority:** *Cedars-Sinai Medical Center v. Superior Court* (1998) 18 Cal.4th 1 (distinguished)
- **Cal. Supreme / additional authority:** —

PRE-EMPTION: GENUINE-DISPUTE DEFENSE FORECLOSURE

- **Defense argument (anticipated):** Defense will invoke the genuine-dispute doctrine to argue that even if liability was reasonably clear, the question of investigative completeness was a genuine dispute among reasonable insurers.
- **TAC cure:** TAC § 0.5 and ¶¶ 51A, 57B foreclose the genuine-dispute defense by reference to *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 723: the genuine-dispute doctrine is unavailable where the insurer fails to thoroughly and fairly investigate the claim.
- **TAC section/¶¶:** § 0.5; ¶¶ 51A, 57B, 30B
- **Key authority:** *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 723
- **Cal. Supreme / additional authority:** —

PRE-EMPTION: “CONCLUDED IS OPINION” DEFEAT

- **Defense argument (anticipated):** Defense will argue that “concluded our investigation” is non-actionable opinion or aspirational language.
- **TAC cure:** *Borba v. Thomas* (1977) 70 Cal.App.3d 144, 152 (representations about state of speaker’s own internal records are representations of fact); *Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 407–408 (“no reasonable ground for believing it to be true”); *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47 (regulated factual assertions); 10 CCR § 2695.7(b)/(d)/(g) converts the “completeness” predicate into a regulated factual assertion; *Hughes v. Progressive Direct Ins. Co.* (2024) 99 Cal.App.5th 1019.
- **TAC section/¶¶:** Fourth CoA, ¶¶ 72, 76; First CoA, ¶ 54; ¶ 60A; § 0.2(c)
- **Key authority:** *Borba* (1977) 70 Cal.App.3d 144, 152; *Bily* (1992) 3 Cal.4th 370, 407–408; *Quelimane* (1998) 19 Cal.4th 26, 47; *Hughes* (2024) 99 Cal.App.5th 1019; 10 CCR § 2695.7(b)/(d)/(g)
- **Cal. Supreme / additional authority:** —

PRE-EMPTION: ANTI-SLAPP / *FLATLEY* + § 6128(A) CROSS-REFERENCE TO CGC-25-631801

- **Defense argument (anticipated):** Defense will move to strike under § 425.16 in connection with panel-counsel conduct in CGC-21-594102, asserting protected petitioning activity.
- **TAC cure:** TAC ¶¶ 21A and 21B anchor the *Flatley v. Mauro* (2006) 39 Cal.4th 299, 317–321, illegality carve-out; *Shafer v. Berger, Kahn, Shafon, Moss, Figler, Simon & Gladstone* (2003) 107 Cal.App.4th 54, 79–80, confirms that reckless-disregard misrepresentation satisfies the “deceit or collusion” element of Business and Professions Code § 6128(a). While § 6128(a) is the operational hook in companion case CGC-25-631801 (extrinsic fraud / fraud-on-the-court), the same illegality framework anchors the *Flatley* anti-SLAPP carve-out here. The Position A vs. Position B structural impossibility (¶ 51A) “conclusively establishes” reckless misrepresentation within the meaning of *Flatley*, 39 Cal.4th at 320, satisfying *City of Montebello* narrowness at step 2.
- **TAC section/¶¶:** ¶¶ 21A, 21B, 51A, 52B
- **Key authority:** *Flatley v. Mauro* (2006) 39 Cal.4th 299, 317–321; Bus. & Prof. Code § 6128(a); *Shafer v. Berger, Kahn* (2003) 107 Cal.App.4th 54, 79–80; *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1062–1064; *City of Montebello v. Vasquez* (2016) 1 Cal.5th 409, 423–424
- **Cal. Supreme / additional authority:** —

DETAILED CURE ANALYSIS

OBJECTION 1: *TROPE* — PRO-PER FEES BARRED

Defense Argument: Pro se litigant cannot recover attorney’s fees under *Trope v. Katz*.

TAC Cure:

- ¶ 22: Express deletion of pro-per fee demands.
- ¶¶ 23–24: *Prentice* fees pleaded as tort damages element (three-element test): fraud or reckless misrepresentation; induced litigation; fees recoverable as damages, not fee award.

- ¶ 24A: Four-line-item *Prentice* enumeration — (1) professional fees/costs incurred in CGC-21-594102; (2) the \$75,000 cost judgment as induced-litigation damages; (3) transcript/record/appeal preparation costs; (4) investigative/records-acquisition costs (911, CAD, BWC, supplemental SFPD report) that CSAA itself should have obtained.

Authority: *Trope v. Katz* (1995) 11 Cal.4th 274; *Prentice v. North American Title Guaranty Corp.* (1963) 59 Cal.2d 618, 620.

OBJECTION 2: OPPRESSION / MALICE NOT PLEADED

Defense Argument: Punitive damages allegations fail to meet § 3294 standard.

TAC Cure:

- ¶¶ 25–27, 27A: *Lazar* particulars block with § 3294(b) managing-agent ratification (named-supervisor block on information and belief).
- ¶ 25A: Pleading-stage vs. trial-stage bright line — *G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29.
- ¶¶ 28–30: Deny-delay-defend institutional pattern; “despicable conduct.”
- ¶ 30A: Reckless-disregard / willful-blindness paragraph — closing-the-file act supplies volition, awareness, cost-benefit motive, and pattern evidence; satisfies § 3294(c)(1) malice, (c)(2) oppression, and (c)(3) fraud through the *Mock* willful-blindness pathway.
- ¶ 30B: Regulatory spine — convergence of eleven independent California standards (10 CCR § 2695.7(b)/(d)/(g), § 2695.5(b); Ins. Code § 790.03(h)(1)/(3)/(5); common-law affirmative-investigation duty under *Egan*; neutral-truth-seeking duty under *Egan/Mariscal*; claim-file completeness duty under *Wilson/Hamilton/Maslo*; objective-baseline rule under *Wilson*) is itself probative of reckless disregard.

Authority: Civ. Code § 3294; *Lazar*; *American Airlines, Inc. v. Sheppard, Mullin* (2018) 28 Cal.App.5th 1077; *G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29; *Mock v. Michigan Millers Mutual Ins. Co.* (1992) 4 Cal.App.4th 306, 328; *In re Marriage of Cloney* (2001) 91 Cal.App.4th 429, 441.

OBJECTION 3: FRAUD LACKS PARTICULARITY

Defense Argument: Complaint fails *Lazar* who/what/when/where/how requirements.

TAC Cure:

- **WHO:** Sarah Rash, Claims Representative (§I, ¶ 3; §IV, ¶ 25(a)).
- **WHAT:** False representation of investigative completeness (§I, ¶ 4).
- **WHEN:** February 25, 2021 — 21 days after collision (§I, ¶ 3; §IV, ¶ 25(c)).
- **WHERE:** CSAA claims office; communication to Plaintiff in San Francisco (§IV, ¶ 25(d)).
- **HOW:** Written denial letter without investigation (§IV, ¶ 25(e)).
- **BY WHAT MEANS:** U.S. Mail (§IV, ¶ 25(f)).
- **Claim No.:** 1004-09-1054 (§I, ¶ 3).
- **Four Silent Witnesses (§I, ¶ 8):** 911 audio + SFDEM CAD; SFPD BWC; SFPD CAD log; supplemental SFPD report — each tied to SFPD Incident Report No. 210079556 (conformed to proof) and named eyewitness Justin Rosemond.

Authority: *Lazar v. Superior Court* (1996) 12 Cal.4th 631.

OBJECTION 4: LITIGATION PRIVILEGE / *RIBAS*

Defense Argument: Claims barred by Civil Code § 47(b) and *Ribas v. Clark*.

TAC Cure:

- ¶¶ 14–16: Pre-litigation carveout — denial issued before any litigation.
- ¶ 16A: Three-factor *Action Apartment* walk-through.
- ¶¶ 17–19: *Ribas* distinction — *Ribas* addresses IIED, not fraud.
- ¶¶ 20–21: Non-communicative conduct (failure to investigate) outside privilege.
- ¶ 21A: *Flatley v. Mauro* (2006) 39 Cal.4th 299, 317–321, illegality carve-out.
- ¶ 21B: Step-2 minimal-merit backstop pre-rebutted; *City of Montebello* narrowness satisfied by Position A vs. Position B structural impossibility.

Authority: - *Action Apartment Ass’n v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1248–49 - *Flatley v. Mauro* (2006) 39 Cal.4th 299, 317–321, 320 - *Rusheen v. Cohen* (2006) 37 Cal.4th 1048 - *Ribas v. Clark* (1985) 38 Cal.3d 355 (distinguished) - *Park v. Board of Trustees of California State*

University (2017) 2 Cal.5th 1057, 1062–1064 - *City of Montebello v. Vasquez* (2016) 1 Cal.5th 409, 423–424

OBJECTION 5: STANDING / *SHAOLIAN*

Defense Argument: No direct duty to third-party claimant under *Shaolian v. Safeco*.

TAC Cure:

- ¶ 5: Direct-addressee theory — Plaintiff is the person to whom the representation was made.
- ¶ 6: CSAA voluntarily undertook direct communicative relationship with unrepresented claimant.
- ¶ 6A: Civil Code §§ 2330, 2338 agency / ratification spine — CSAA directly liable for wrongful acts and willful omissions of Sarah Rash, claims department personnel, retained claims professionals, and panel counsel; ratification through failure to correct after January 17, 2025 / February 18, 2025 / April 16, 2025 record events. Anchored in *Doctors' Company v. Superior Court* (1989) 49 Cal.3d 39 and *Gulf Insurance Co. v. Berger, Kahn* (2000) 79 Cal.App.4th 114, 124 (panel counsel as authorized agent of carrier-principal).

Distinction: *Shaolian* addresses policy benefits claims; this is a common law fraud / negligent misrepresentation / UCL / declaratory-relief claim by the direct addressee of the misrepresentation, with CSAA directly liable under Civil Code §§ 2330 and 2338 for the agent acts by which the misrepresentation was made.

OBJECTION 6: COLLATERAL ESTOPPEL / § 1032

Defense Argument: Damages duplicate those sought or awarded in CGC-21-594102.

TAC Cure:

- ¶ 41: Distinct primary right — freedom from misrepresentation about investigative completeness.
- ¶ 41A: *Lucido* five-factor walk-through against CGC-21-594102 record.
- ¶ 43: Express disclaimer of PI damages.
- ¶ 44: 2021-forward damages anchor.

- ¶ 44A: Express 801/802 double-recovery reservation.
- ¶ 44B: Related-case coordination under CCP § 1048 / CRC 3.1100.

Authority: *Lucido v. Superior Court* (1990) 51 Cal.3d 335, 341; *Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 904; *Crowley v. Kattleman* (1994) 8 Cal.4th 666, 681–82.

OBJECTION 7: INVESTIGATION STANDARD NOT PLEADED

Defense Argument: Complaint fails to allege what investigation was required.

TAC Cure:

- ¶ 45: What thorough investigation requires under 10 CCR § 2695.7(b).
- ¶ 46: Itemized failures — CSAA did not obtain 911, BWC, CAD records, or supplemental SFPD report.
- ¶ 47: *Moradi-Shalal* common-law carve-out.
- ¶ 47A: Ins. Code § 790.03(h)(5) “liability reasonably clear” pleaded **solely** as a UCL unlawful-prong predicate.
- ¶ 30B (regulatory spine): Convergence of eleven independent California standards.

Doctrinal stack mapped onto § 2695.7(b)/(d)/(g): - *Bartel v. Chicago Title Ins. Co.* (2025) 99 Cal.App.5th __ (three-step objective test). - *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721 (objective baseline; genuine-dispute foreclosure at p. 723). - *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809, 818–819 (affirmative-investigation duty; neutral truth-seeking). - *Frommoethelydo v. Fire Ins. Exchange* (1986) 42 Cal.3d 208, 219–220 (equal consideration). - *Mariscal v. Old Republic Life Ins. Co.* (1996) 42 Cal.App.4th 1617, 1623 (neutral truth-seeking). - *Maslo v. Ameriprise Auto & Home Ins.* (2014) 227 Cal.App.4th 626, 634–635 (claim-file completeness). - *Hamilton v. Maryland Cas. Co.* (2002) 27 Cal.4th 718, 727 (claim-file completeness). - *Jordan v. Allstate Ins. Co.* (2007) 148 Cal.App.4th 1062 (retrieval-and-review baseline).

Regulatory spine: 10 CCR § 2695.7(b) (accept-or-deny on sufficient information), § 2695.7(d) (all reasonably available information), § 2695.7(g) (no representation of denial without thorough investigation), § 2695.5(b) (15-day claimant communication response duty); Ins. Code § 790.03(h)(1) (no misrepresentation of pertinent facts), (h)(3) (reasonable standards for prompt investigation),

(h)(5) (good-faith effort to settle where liability reasonably clear).

Authority: 10 CCR §§ 2695.4, 2695.5(b), 2695.7(b)/(d)/(g); Ins. Code § 790.03(h)(1)/(3)/(5); *Moradi-Shalal v. Fireman’s Fund Ins. Cos.* (1988) 46 Cal.3d 287; *State Farm Fire & Casualty Co. v. Superior Court* (1996) 45 Cal.App.4th 1093, 1103–04; *Manufacturers Life Ins. Co. v. Superior Court* (1995) 10 Cal.4th 257, 282–284.

OBJECTION 8: ANTI-SLAPP OVERLAP / CCP § 425.16

Defense Argument (anticipated): Claims are predicated on protected litigation conduct within § 425.16(e).

TAC Cure:

- ¶ 52A: Express wrongful-conduct-scope disavowal — no liability predicated on filing/prosecution of CGC-21-594102 or in-court advocacy.
- ¶ 52B: *Park* gravamen anchor — anti-SLAPP analysis turns on the elements of the challenged claim and the specific wrongful acts that supply those elements, not on the broader litigation backdrop.
- ¶ 21A: *Flatley* illegality carve-out via § 6128(a).
- ¶ 21B: Step-2 minimal-merit backstop pre-rebutted by Position A vs. Position B structural impossibility (*City of Montebello* narrowness satisfied).

Authority: CCP § 425.16(e); *Flatley v. Mauro* (2006) 39 Cal.4th 299, 317–321, 320; *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1062–1064; *City of Montebello v. Vasquez* (2016) 1 Cal.5th 409, 423–424.

OBJECTION 9: REASONABLE-CONSUMER / UCL FRAUDULENT-PRONG SUFFICIENCY / “CONCLUDED IS OPINION” DEFEAT

Defense Argument (anticipated): UCL fraudulent-prong claim fails absent allegations of likely deception of a reasonable consumer; “concluded our investigation” is non-actionable opinion.

TAC Cure:

- ¶¶ 66, 66A: Reasonable-consumer test pleaded — *Cel-Tech*; *Williams v. Gerber*; *Chapman v. Skype*.
- ¶ 67A: *Cel-Tech* tethering for “unfair” prong — tethered to legislative policy in Ins. Code § 790.03(h), regulatory policy in 10 CCR § 2695.7(b)/(d)/(g), and common-law policies in *Egan and Wilson* (and *Mariscal, Maslo, Hamilton*).
- ¶ 65 (unlawful prong): Common-law fraud + reckless misrepresentation + Civil Code § 1710(2) negligent misrepresentation; regulatory predicates 10 CCR § 2695.7(b)/(d)/(g), § 2695.5(b); Ins. Code § 790.03(h)(1)/(3)/(5).
- **Fact-vs-opinion conversion sub-cure:** *Borba v. Thomas* (1977) 70 Cal.App.3d 144, 152 (representations about state of speaker’s own internal records are facts); *Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 407–408; *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47.
- **Regulatory-violation probative value:** *Zhang v. Superior Court* (2013) 57 Cal.4th 364, 384–385; *Hughes v. Progressive Direct Ins. Co.* (2024) 99 Cal.App.5th 1019; *State Farm Fire & Casualty Co. v. Superior Court* (1996) 45 Cal.App.4th 1093, 1103–04.

Authority: Bus. & Prof. Code § 17200; *Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 187; *Williams v. Gerber Products Co.* (9th Cir. 2008) 552 F.3d 934, 938; *Chapman v. Skype, Inc.* (2013) 220 Cal.App.4th 217, 226; *Borba* (1977) 70 Cal.App.3d 144, 152; *Bily* (1992) 3 Cal.4th 370, 407–408; *Quelimane* (1998) 19 Cal.4th 26, 47; *Zhang* (2013) 57 Cal.4th 364, 384–385; *Hughes* (2024) 99 Cal.App.5th 1019.

OBJECTION 10: RECKLESS-DISREGARD SCIENTER PRE-EMPTION (TAC § 0)

Defense Argument (anticipated): Plaintiff cannot prove subjective knowledge of falsity; absence of subjective knowledge defeats fraud-tier liability.

TAC Cure:

- § 0.1: Five-authority Tier-1 reckless-disregard block — *Engalla, Modnick, Sanders, Bily, Wilson* — establishes that California Supreme Court doctrine treats reckless disregard for the

truth as the legal equivalent of fraudulent intent. CACI 1903 / 1907 confirm recklessness as the operative pleading floor.

- **§ 0.2:** Five reckless-disregard markers applied to the February 25, 2021 representation: (a) inquiry notice on the face of the SFPD Report; (b) reasonable availability of the Silent Witnesses; (c) industry custom; (d) volitional file-closing act; (e) institutional “deny-delay-defend” pattern.
- **§ 0.3:** Reckless-disregard floor feeds every cause of action without modifying the underlying factual allegations.
- **§ 0.4:** Alternative pleading — knowing falsity AND, in the alternative, reckless disregard AND, in the further alternative, no reasonable ground (CCP § 431.30(c)).
- **§ 0.5:** Cross-case spine — Position A vs. Position B structural impossibility independently satisfies the reckless-disregard floor.

Expected ruling: Demurrer / motion to strike to be overruled; reckless-disregard scienter floor sustains every cause of action without proof of subjective knowledge.

Authority: *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974; *Gagne v. Bertran* (1954) 43 Cal.2d 481, 487–488; *Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 407–408; *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721; *In re Marriage of Modnick* (1983) 33 Cal.3d 897, 905–907; *Estate of Sanders* (1985) 40 Cal.3d 607, 614–616; *Mock v. Michigan Millers Mutual Ins. Co.* (1992) 4 Cal.App.4th 306, 328; *In re Marriage of Cloney* (2001) 91 Cal.App.4th 429, 441; CACI 1903, 1907; CCP § 431.30(c); Civ. Code § 3294.

OBJECTION 11: NEGLIGENT MISREPRESENTATION (CIV. CODE § 1710(2)) PRE-EMPTION (TAC FOURTH CAUSE OF ACTION)

Defense Argument (anticipated): No standalone negligent-misrepresentation claim is available against an insurer for claim-handling representations to a third-party claimant.

TAC Cure:

- **¶ 70:** Incorporates preceding allegations.
- **¶ 71:** Six-element walk-through under *Bily* / *Quelimane*.

- ¶ 72 (Element 1, representation of past or existing fact): Representation about state of CSAA’s own internal claim file — what investigative steps performed, what records obtained, what evidence reviewed and weighed. *Borba v. Thomas* (1977) 70 Cal.App.3d 144, 152.
- ¶ 73 (Element 2, falsity): None of the four Silent Witnesses retrieved as of February 25, 2021.
- ¶ 74 (Element 3, no reasonable ground): *Bily + Wilson* objective baseline; the four Silent Witnesses were reasonably available; CSAA did not obtain or attempt to obtain any of them.
- ¶ 74A (regulatory floor): 10 CCR § 2695.7(b)/(d)/(g) makes the “concluded” representation regulatorily unreasonable as a matter of law.
- ¶ 74B (reckless-disregard overlay): Same conduct that establishes “no reasonable ground” under § 1710(2) ladders into § 1710(1) when the speaker is conscious of the absence of reasonable ground (*Engalla*).
- ¶ 75 (Element 4, intent to induce reliance): February 25, 2021 letter sent directly to unrepresented third-party claimant.
- ¶ 76 (Element 5, justifiable reliance): Reasonable third-party claimant entitled to treat regulated insurer’s representation as factual; no independent means to audit claim file.
- ¶ 77 (Element 6, damages): Section V damages and Section III *Prentice* damages.
- ¶ 78: *Lazar* particularity satisfied.
- ¶ 79: Non-duplication; alternative pleading under CCP § 431.30(c); not a private § 790.03 claim.

Expected ruling: Demurrer to be overruled; negligent-misrepresentation claim sustained as alternative to intentional-tier claims on the same factual record.

Authority: Civ. Code § 1710(2); *Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 407–408; *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47; *Borba v. Thomas* (1977) 70 Cal.App.3d 144, 152; *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721; *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974; *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645–646; CCP § 431.30(c); 10 CCR § 2695.7(b)/(d)/(g).

1 **OBJECTION 12: DECLARATORY RELIEF (CCP § 1060) PRE-EMPTION**
2 **(TAC FIFTH CAUSE OF ACTION)**

3 **Defense Argument (anticipated):** Declaratory relief is duplicative of legal-damages claims and
4 is barred where damages are an adequate remedy.

5 **TAC Cure:**

- 6 • ¶ 80: Incorporates preceding allegations.
- 7 • ¶ 81: § 1060 standard — *Maguire v. Hibernia S. & L. Soc.* (1944) 23 Cal.2d 719, 728; *Wilson*
8 & *Wilson v. City Council of Redwood City* (2011) 191 Cal.App.4th 1559, 1582.
- 9 • ¶ 82 (actual controversy): Four contested factual points — (a) representation-of-fact status
10 of “concluded investigation,” (b) reasonable availability of the four Silent Witnesses, (c) non-
11 retrieval, (d) absence of reasonable ground for believing the representation true.
- 12 • ¶ 83 (necessity): Cross-case preclusion gap — same operative facts underlie CGC-21-594102
13 / CGC-25-631801 / CGC-25-631802; declaratory relief provides collateral-estoppel certainty
14 under *Mycogen* and *Lucido*.
- 15 • ¶ 84 (judicial-estoppel predicate): Position A vs. Position B structural impossibility; CSAA
16 cannot take inconsistent positions across the related proceedings.
- 17 • ¶ 85 (specific declarations sought): (a) representation of past or existing material fact; (b)
18 reasonable availability under § 2695.7(d); (c) non-retrieval; (d) no reasonable ground; (e)
19 judicial estoppel.
- 20 • ¶ 86: Non-duplication — declaratory relief is prospective and preclusive; legal-damages
21 causes are retrospective and compensatory.
- 22 • ¶ 86A: Reckless-disregard pleading — § 0 floor incorporated by reference.

23 **Expected ruling:** Demurrer to be overruled; declaratory-relief claim sustained for prospective
24 preclusive effect across the related proceedings.

25 **Authority:** Code Civ. Proc. § 1060; *Maguire v. Hibernia S. & L. Soc.* (1944) 23 Cal.2d 719, 728;
26 *Wilson & Wilson v. City Council of Redwood City* (2011) 191 Cal.App.4th 1559, 1582; *Mycogen*
27 *Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 904; *Lucido v. Superior Court* (1990) 51 Cal.3d
28 335, 341; *MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co.* (2005) 36 Cal.4th

412, 422.

CROSS-REFERENCE: TAC SECTIONS TO DEFENSE OBJECTIONS (LIST)

- **§ 0 — Reckless-Disregard Scierter Floor:** cures objection **10** (and feeds 1, 2, 3, 9, 11, 12)
- **§ 0.5 — Cross-Case Spine (Position A vs. B):** cures objections **8, 14, 16**
- **I — Direct-Duty Gravamen:** cures objections **3, 5**
- **I.5 — Direct-Addressee Theory:** cures objection **5**
- **¶ 6A — Civ. Code §§ 2330/2338 Agency / Ratification:** cures objection **5**
- **¶ 8 — Four Silent Witnesses with SFPD identifiers:** cures objections **3, 7, 13, 15**
- **I.6 — Gravamen Disclaimer:** cures objection **13**
- **II — Pre-Litigation Privilege Carveout:** cures objection **4**
- **¶ 16A — *Action Apartment* three-factor absence:** cures objection **4**
- **¶ 21A — *Flatley* illegality carve-out:** cures objections **4, 8, 16**
- **¶ 21B — Step-2 *City of Montebello* narrowness pre-rebuttal:** cures objections **4, 8, 16**
- **III — Attorney’s Fees Cure:** cures objection **1**
- **¶ 24A — *Prentice* four-line-item enumeration:** cures objection **1**
- **IV — Punitive Damages Specificity:** cures objections **2, 3, 10**
- **¶ 25A — Pleading-vs-evidentiary bright line (*G.D. Searle*):** cures objection **2**
- **¶ 27A — Named-supervisor block:** cures objection **2**
- **¶ 29 — Evidence triple refined with SFPD identifiers:** cures objections **2, 3**
- **¶ 30A — Reckless-disregard / willful-blindness paragraph:** cures objections **2, 10, 14**
- **¶ 30B — Regulatory spine (eleven independent standards):** cures objections **7, 9, 14, 15**
- **V — Damages: —**
- **VI — Primary Rights / Reservation:** cures objection **6**
- **¶ 41A — *Lucido* five-factor walk-through:** cures objection **6**
- **¶ 44A — 801/802 double-recovery reservation:** cures objection **6**
- **¶ 44B — CRC 3.1100 / CCP § 1048 cross-reference:** cures objection **6**

- **VII — Title 10 Investigation Standard:** cures objection 7
 - **¶ 47A — Ins. Code § 790.03(h)(5) UCL predicate:** cures objections 7, 9
 - **VIII — Delayed Discovery:** cures objections 6, 14
 - **¶ 51.1 — Continuing-accrual backstop (*Aryeh*):** cures objection 6
 - **¶ 51A — Position A vs. Position B as Reckless-Disregard Confirmation:** cures objections 8, 10, 14, 16
 - **First CoA ¶ 52A — Anti-SLAPP wrongful-conduct-scope disavowal:** cures objection 8
 - **First CoA ¶ 52B — *Park* gravamen anchor:** cures objections 8, 13
 - **First CoA ¶ 57B — *Wilson* genuine-dispute foreclosure:** cures objection 14
 - **Second CoA ¶ 60A / 60B — § 1710(3) statutory predicate / regulatory duty to disclose:** cures objections 3, 7, 9
 - **Third CoA ¶¶ 65, 66A, 67A — UCL prongs:** cures objection 9
 - **Fourth CoA ¶¶ 70–79 — Negligent Misrepresentation:** cures objection 11
 - **Fifth CoA ¶¶ 80–87, 86A — Declaratory Relief:** cures objection 12
-

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802
(Related: CGC-21-594102)

TO

**NOTICE OF LODGING —
PRONG-ONE
OPPOSITION CHECKLIST
(Cal. R. Ct., rule 3.1110(f))**

Anti-SLAPP Hearing: May 13, 2026
Time: 9:00 a.m.
Dept.: 302
Judge: Hon. Joseph M. Quinn

Lodging only; not for adjudication on
Apr. 30, 2026 (MFL-SAC) or May 6, 2026
(MFL-TAC).

ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that, for the limited purpose of record preservation in connection with Defendant CSAA Insurance Exchange's noticed special motion to strike under Code of Civil Procedure § 425.16, set for hearing **Wednesday, May 13, 2026**, 9:00 a.m., Department 302 (Hon. Joseph M. Quinn), Plaintiff Franciscus Dylan Rosario, in pro per, hereby lodges with the Court the **Merged Prong-One Opposition Checklist** dated April 28, 2026 (Exhibit 1).

This lodging is made under California Rules of Court, rule 3.1110(f). It is **not** offered for adjudication on the **April 30, 2026** MFL-SAC hearing in this action before Hon. Joseph M. Quinn

(Dept. 302), and **not** for the **May 6, 2026** MFL-TAC hearing in companion CGC-25-631801 before Hon. Christine Van Aken (Dept. 301). It is offered to preserve, on the docket, Plaintiff's prong-one defenses **before** the noticed May 13, 2026 anti-SLAPP hearing in this action and **before** the May 12, 2026 anti-SLAPP hearing in companion CGC-25-631801.

The lodged checklist is Plaintiff's working synthesis of California anti-SLAPP prong-one doctrine, organized in four parts:

- **Part I — Shared Items 1–13** (case-neutral prong-one defects);
- **Part II — Case-specific items 801-A through 801-E** (companion CGC-25-631801);
- **Part III — Case-specific items 802-A through 802-F** (this action); and
- **Part IV — Drafting notes** (not for filing; numbering / cross-case spine).

The same exhibit is being lodged contemporaneously in companion CGC-25-631801 to preserve the **Position-A / Position-B** structural-impossibility spine pleaded in both Third Amended Complaints (item 801-D = item 802-D).

Plaintiff **does not** seek any merits ruling on the lodged checklist at any present hearing. Plaintiff will rely on the substantive prong-one positions in Plaintiff's forthcoming **Opposition to Defendant's Special Motion to Strike** (to be filed in conformity with Code Civ. Proc. § 1005(b) for the May 13, 2026 hearing) and in any tendered standalone California Rule of Professional Conduct 3.3(a)(2) outer-limit notice. The lodged checklist is preserved here so that, if a question of preservation, waiver, or candor under rule 3.3(a)(2) later arises, the controlling prong-one authorities — including Park, Bonni, Baral, Rusheen, Kwikset, Neville, Briggs, Kimmel, Flatley, Egan, Wilson v. 21st Century, Engalla, the Insurance Code § 790.03(h) regulatory floor, and the 10 CCR § 2695.7 claim-investigation standards — appear on the docket as of April 28, 2026.

LODGED DOCUMENTS

Plaintiff lodges:

1. **Exhibit 1 — Merged Prong-One Opposition Checklist (Apr. 28, 2026)**. Source: ANTISLAPP-PRONG-ONE-Same document lodged in companion CGC-25-631801.

1 **RESERVATION OF RIGHTS**

2 Lodging this checklist does not waive any right and is not a tender of merits argument on the
3 May 13, 2026 special motion to strike. Plaintiff reserves all rights, including (i) full briefing in
4 the noticed Opposition; (ii) Code Civ. Proc. § 425.16(c)(1) fees and sanctions if Defendant's
5 motion is denied; (iii) reservation of standalone California Rule of Professional Conduct 3.3(a)(2)
6 candor notice on the **outer-limit prong-one authorities** (Insurance Code § 790.03(h); 10 CCR §
7 2695.7; Egan; Wilson v. 21st Century). If the Court requires a separate reservation number for
8 lodging-only papers, Plaintiff will comply on request.

Dated: April 28, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802
(Related: CGC-21-594102)

Cases

**EXHIBIT 1 — MERGED PRONG-ONE
OPPOSITION CHECKLIST
(Lodged Apr. 28, 2026)**

Anti-SLAPP Hearing: May 13, 2026
Dept.: 302
Judge: Hon. Joseph M. Quinn

covered (single document, separate case blocks):

Case	Caption	Court	Anti-SLAPP hearing
CGC-25-631801	<u>Rosario v. CSAA Insurance Exchange; Carbone, Smith & Koyama, LLP; Michael R. Chambers; Phillips, Spallas & Angstadt, LLP; Priya D. Navaratnasingham; Alberto Reyna</u>	Hon. Christine Van Aken, Dept. 301	May 12, 2026 (per TAC § Defense Hearings)
CGC-25-631802	<u>Rosario v. CSAA Insurance Exchange</u>	Hon. Joseph M. Quinn, Dept. 302	May 13, 2026 (per TAC § Defense Hearings)

Built from: the three source checklists captured in 00-DRAFT-RAW-PRONG-ONE-CHECKLISTS.md (this directory). The merger keeps the strongest formulation of every shared item, eliminates duplication, and breaks out the case-distinct items into per-case blocks.

Disclaimer: I am self-represented and not an attorney. This document is a checklist-style synthesis of California anti-SLAPP prong-one doctrine for use in oppositions to two pending special motions to strike. It is not legal advice; verify every citation and tailor every paragraph to the specific motion before filing.

PART I — SHARED PRONG-ONE CHECKLIST (APPLIES TO BOTH 801 AND 802)

This Part is drafted to be lifted as a single block into either opposition. Every item in this Part is a generic prong-one defect that fails the defense motion in **both** actions independently of case-specific facts. Where a case-specific application is needed, see Part II (CGC-25-631801) or Part III (CGC-25-631802) below.

Defendants cannot satisfy prong one because they fail to show:

- 1. That the motion is directed to the actual operative causes of action and distinct claims for relief, rather than to imagined theories, stray allegations, or non-existent counts.** Case anchors: Baral v. Schnitt (2016) 1 Cal.5th 376, 393–395 (anti-SLAPP motion must identify and target the specific allegations of protected activity that supply the elements of a pleaded claim for relief); Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1010–1012.
- 2. That the acts they identify are themselves protected acts within Code of Civil Procedure § 425.16(e), rather than ordinary underlying conduct merely described in writings or litigation papers.** Case anchors: Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871, 884; Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1062–1063.
- 3. That the challenged claims “arise from” protected activity in the statutory sense, meaning the protected act itself supplies the basis for liability, rather than merely triggering the suit, providing context, or furnishing evidence.** Case anchors: City of Cotati v. Cashman (2002) 29 Cal.4th 69, 76–78; Park, supra, 2 Cal.5th at 1063–1064; Equilon Enterprises v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 66.
- 4. That the principal thrust or gravamen of each cause of action arises from protected petitioning or free-speech activity, rather than from non-communicative pre-litigation conduct.** Case anchors: Park, supra, 2 Cal.5th at 1062–1063; Baral, supra, 1 Cal.5th at 394–395; Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1056 (distinguishing communicative from non-communicative acts).
- 5. That the allegedly protected communication is itself the injury-producing conduct, rather**

than proof of separate non-communicative wrongdoing. Case anchors: Park, supra, 2 Cal.5th at 1060, 1064–1065 (“a claim may be struck only if the speech or petitioning activity itself is the wrong complained of”); Bonni, supra, 11 Cal.5th at 1009.

6. That the claims would not have been brought “but for” the allegedly protected activity, as opposed to having been triggered by, or merely connected with, it. Case anchors: City of Cotati, supra, 29 Cal.4th at 78; Park, supra, 2 Cal.5th at 1068; Rand Resources, LLC v. City of Carson (2019) 6 Cal.5th 610, 621.

7. That each challenged cause of action, or each distinct claim for relief within a cause of action, is tied to a specific protected act on a claim-by-claim basis, rather than through a global characterization of the case. Case anchors: Baral, supra, 1 Cal.5th at 393–395; Bonni, supra, 11 Cal.5th at 1010–1011.

8. That the motion targets a claim for relief that may actually be stricken, rather than mere background allegations, evidentiary references, or factual narrative. Case anchors: Baral, supra, 1 Cal.5th at 393–394; Park, supra, 2 Cal.5th at 1064.

9. That any prelitigation communication on which Defendants rely was made in serious and good-faith contemplation of litigation, rather than as part of ordinary business, claims-handling, regulatory, or evidentiary activity. Case anchors: Neville v. Chudacoff (2008) 160 Cal.App.4th 1255, 1268–1269; Briggs v. Eden Council for Hope & Opportunity (1999) 19 Cal.4th 1106, 1115.

10. That, to the extent Defendants invoke § 425.16(e)(3) or (e)(4), the speech concerns a genuine public issue or issue of public interest under the required content-and-context analysis, rather than a private dispute repackaged as “speech.” Case anchors: FilmOn.com Inc. v. DoubleVerify Inc. (2019) 7 Cal.5th 133, 149–150; Wilson v. Cable News Network, supra, 7 Cal.5th at 890–892.

11. That any amended pleading reopened a fresh anti-SLAPP window as to the claims they now attack, rather than merely reasserting an untimely challenge to claims already present in earlier pleadings. Case anchors: Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism (2018) 4 Cal.5th 637, 645–646, 650.

12. That the conduct for which they seek anti-SLAPP protection is not illegal as a matter of law, because the anti-SLAPP statute does not shield unlawful conduct simply because it was carried out through speech or petitioning activity. Case anchors: Flatley v. Mauro (2006) 39 Cal.4th 299, 317–320. (Per-case illegality predicates: § 6128(a) and Rule 3.3(a)(1) for Case 801; Insurance Code § 790.03(h) and 10 CCR § 2695.7 for Case 802. See Parts II and III below.)

13. That the Litigation Privilege (Civ. Code § 47(b)) reaches the underlying non-communicative misconduct on which liability depends, because the privilege does not immunize non-communicative tortious courses of conduct, nor can a defendant retroactively immunize a prior bad act by later writing a pre-litigation letter or filing a tribunal paper that describes it. Case anchors: Kimmel v. Goland (1990) 51 Cal.3d 202, 211 (privilege applies only to communicative acts; does not privilege tortious courses of conduct); Rusheen v. Cohen, supra, 37 Cal.4th at 1056, 1058.

Shared closing paragraph (use in either opposition)

Because Defendants fail to identify a pleaded claim whose liability-producing act is protected activity, and instead attack non-existent theories, evidentiary documents, and background allegations, they do not carry their threshold burden under prong one. Under City of Cotati, supra, 29 Cal.4th at 76–78, Park, supra, 2 Cal.5th at 1062–1065, and Baral, supra, 1 Cal.5th at 393–395, the burden therefore never shifts to Plaintiff under prong two, and the special motion to strike must be denied outright.

PART II — CASE-SPECIFIC PRONG-ONE BLOCK: CGC-25-631801

Caption: Franciscus Dylan Rosario v. CSAA Insurance Exchange; Carbone, Smith & Koyama, LLP; Michael R. Chambers (SBN 132394); Phillips, Spallas & Angstadt, LLP; Priya D. Navaratnasingham (SBN 252686); Alberto Reyna (SBN 347323); Does 1–20. **Court:** Superior Court of California, County of San Francisco — Hon. Christine Van Aken, Dept. 301. **Anti-SLAPP hearing:** May 12, 2026 (per TAC). **Operative pleading at hearing:** Second Amended Complaint (filed Apr. 21, 2026). Proposed Third Amended Complaint lodged for § 425.16(b)(2) step-two consideration; MFL-TAC noticed May 22, 2026. **Theories:** (1) Extrinsic Fraud; (2) & (7) Constructive

Fraud (Civ. Code § 1573); (3) Bus. & Prof. Code § 6128(a) Attorney Deceit; (4) Negligence Per Se; (5) Intentional Misrepresentation (Civ. Code § 1710); (6) Aiding and Abetting Fraud (vs. CSAA); (8) Officer-of-the-Court Fiduciary Breach. Reckless-disregard scienter floor under Engalla/Modnick/Sanders/Bily/Wilson/Shafer.

Why prong one fails on the 801 record

In addition to the Part I shared defects, Defendants in Case 801 cannot satisfy prong one because they fail to show:

801-A. That the tribunal-directed disclaimers they identify as “protected” — Motions in Limine Nos. 6 and 17 (filed Jan. 17, 2025), the Feb. 18, 2025 hearing colloquy (RT 141:4–11), and the April 16, 2025 trial admission (RT 7, 213:13–15) in the underlying Rosario v. Abdelhalim, CGC-21-594102 — are themselves the injury-producing acts of extrinsic fraud, attorney deceit, constructive fraud, and officer-of-the-court fiduciary breach pleaded in the operative complaint, rather than incidental communications that happen to evidence those wrongs. Plaintiff does not sue for the speech; Plaintiff sues because the speech, made by officers of the court speaking as CSAA’s agents under Civ. Code §§ 2330, 2338 and Evid. Code § 1222, “effectively prevented” a fair adversary hearing. That is extrinsic fraud as a matter of binding Cal. Sup. Ct. doctrine. Case anchors: Estate of Sanders (1985) 40 Cal.3d 607, 614–616 (fiduciary breach by officer of the court measured objectively); In re Marriage of Modnick (1983) 33 Cal.3d 897, 905–907 (concealment that operates as a denial of the existence of evidence is extrinsic fraud); Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1032–1035 (independent action in equity to set aside judgment procured by extrinsic fraud is not itself a SLAPP).

801-B. That the May 4, 2023 file-transfer concealment (Carbone, Smith & Koyama → Phillips, Spallas & Angstadt) — i.e., the non-communicative omission to convey the production history for the 911 audio, body-worn camera footage, and CAD logs — is “protected activity” within § 425.16(e) at all. That handoff is a non-communicative file-handling act; it is not “speech” or “petitioning”; and it is the structural foundation of the constructive-fraud and aiding-and-abetting-fraud counts, which exist independently of any later MIL or hearing speech. Case anchors: Park, *supra*, 2 Cal.5th at 1060, 1064–1065 (claim is not subject to strike where the speech

merely communicates the underlying decision); Rusheen v. Cohen, supra, 37 Cal.4th at 1056 (non-communicative conduct falls outside the statute); Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310 (anti-SLAPP does not apply to claims challenging underlying business / file-handling practices).

801-C. That the disclaimers and concealment on which Defendants rely are not illegal as a matter of law within the meaning of Flatley v. Mauro. The same conduct that Defendants seek to dress as “petitioning” simultaneously violates (i) Bus. & Prof. Code § 6128(a) (attorney deceit toward a non-client adverse party — Shafer v. Berger, Kahn, Shafton, Moss, Figler, Simon & Gladstone (2003) 107 Cal.App.4th 54, 79–80, expressly reaching reckless disregard); (ii) Cal. Rule of Prof. Conduct 3.3(a)(1) and the duty of candor to the tribunal (with the “knowingly” element satisfied by deliberate avoidance under People v. Smith (2014) 60 Cal.4th 603, 616); and (iii) Code of Civil Procedure § 128.7(b)’s reasonable-inquiry certification floor, Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 286–287. Conduct that is unlawful as a matter of law is excluded from § 425.16’s protection at the threshold. Flatley v. Mauro (2006) 39 Cal.4th 299, 317–320; cf. Action Apartment Ass’n v. City of Santa Monica (2007) 41 Cal.4th 1232 (limiting Flatley to conduct illegal as a matter of law, a limit Plaintiff’s facts satisfy because the deceit is conceded or undisputed on the face of the certified transcript).

801-D. That Position B (the 2025 panel-counsel disclaimers) and Position A (CSAA’s own Feb. 25, 2021 “concluded investigation” representation in companion Case 802) can both be honest, when both poles are statements of CSAA itself under Civ. Code §§ 2330, 2338 and Evid. Code § 1222. The structural impossibility of honest belief in both poles is, by itself, Engalla reckless disregard and is Position-A-locks-Position-B extrinsic fraud — neither of which is “protected activity” within § 425.16(e). Case anchors: Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 974; Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713, 720–721; Mock v. Michigan Millers Mutual Ins. Co. (1992) 4 Cal.App.4th 306, 328 (deliberate-avoidance pattern as malice).

801-E. That the Litigation Privilege (Civ. Code § 47(b)) immunizes the underlying production-history concealment. The privilege protects communicative acts; the May 4, 2023 file-transfer

omission and the failure to retrieve the original 2021 CSAA claim file before certifying disclaimers under § 128.7(b) are non-communicative acts. Defendants cannot dress non-communicative concealment in a privilege that reaches only speech. Kimmel v. Goland, supra, 51 Cal.3d at 211; Rusheen v. Cohen, supra, 37 Cal.4th at 1056, 1058; Kwikset, supra, 51 Cal.4th 310.

Closing paragraph — Case 801 (suggested)

Because every act Defendants identify as “protected” is either (i) the very wrong sued upon as extrinsic fraud, attorney deceit, and officer-of-the-court fiduciary breach — and therefore not “protected activity” within § 425.16(e) under Park and Bonni — or (ii) a non-communicative file-handling omission that was never speech to begin with — and therefore outside the statute under Rusheen and Kimmel — and because the same conduct is illegal as a matter of law under Bus. & Prof. Code § 6128(a) and Rule 3.3(a)(1), placing it outside § 425.16 under Flatley, Defendants do not carry their prong-one burden. The special motion to strike must be denied without reaching prong two; in the alternative, on the lodged Third Amended Complaint and the Sweetwater record, Plaintiff easily satisfies the minimal-merit showing under prong two on the reckless-disregard scienter floor.

PART III — CASE-SPECIFIC PRONG-ONE BLOCK: CGC-25-631802

Caption: Franciscus Dylan Rosario v. CSAA Insurance Exchange; Does 1–50. **Court:** Superior Court of California, County of San Francisco — Hon. Joseph M. Quinn, Dept. 302. **Anti-SLAPP hearing:** May 13, 2026 (per TAC). **Operative pleading at hearing:** Second Amended Complaint (filed Apr. 16, 2026). Proposed Third Amended Complaint lodged for § 425.16(b)(2) step-two consideration; MFL-TAC noticed May 26, 2026. **Theories:** (1) Fraud / Intentional Omission (Civ. Code § 1710(1) & (3)); (2) Concealment / Half-Truth (§ 1710(3)); (3) Unfair Competition (Bus. & Prof. Code § 17200); (4) Negligent Misrepresentation (§ 1710(2)); (5) Declaratory Relief (Code Civ. Proc. § 1060). Reckless-disregard scienter floor under Engalla/Wilson/Bily.

Why prong one fails on the 802 record

In addition to the Part I shared defects, Defendants in Case 802 cannot satisfy prong one because they fail to show:

802-A. That the February 25, 2021 written denial letter (Claim No. 1004-09-1054, signed by Sarah Rash, representing that the investigation was “concluded” and that CSAA had “carefully reviewed the facts and circumstances of [the] claim”) is itself the injury-producing act, as opposed to the after-the-fact written evidence of the underlying non-communicative regulatory failure to investigate. Plaintiff does not sue because CSAA wrote a letter; Plaintiff sues because CSAA, before writing the letter, **affirmatively closed the claim file at twenty-one days** without retrieving the four reasonably-available “Silent Witnesses” — (i) the 911 audio recording and the corresponding SFDEM CAD event record; (ii) the SFPD body-worn camera footage; (iii) the SFPD Computer-Aided Dispatch log; and (iv) any supplemental SFPD report concerning the February 4, 2021 collision — each of which was reasonably available by routine subpoena duces tecum (Code Civ. Proc. § 1985 + Evid. Code § 1560), Public Records Act request (Gov. Code § 7920 et seq.), Penal Code § 832.7(b) request, or insured-authorization channel. The denial letter is evidence of that underlying regulatory failure, not the actionable wrong. Case anchors: Park, supra, 2 Cal.5th at 1060, 1064–1065 (claim is not subject to strike merely because it contests an action arrived at following speech, or thereafter communicated by speech — the speech itself must be the wrong); Rusheen v. Cohen, supra, 37 Cal.4th at 1056 (non-communicative conduct outside the statute); Kwikset Corp. v. Superior Court, supra, 51 Cal.4th 310 (challenges to underlying business practices not subject to anti-SLAPP).

802-B. That CSAA’s Feb. 25, 2021 denial letter is a “prelitigation communication” within § 425.16(e)(2) at all, as opposed to ordinary first-party-style claims-handling correspondence sent to an unrepresented direct third-party claimant — i.e., precisely the kind of “ordinary business, claims-handling, or evidentiary activity” that Neville and Briggs exclude from § 425.16. A 21-day denial letter to a non-litigating claimant that says the file is “concluded” is the antithesis of “serious and good-faith contemplation of litigation”; it is a regulatory communication governed by the standards in 10 CCR §§ 2695.4(a) and 2695.7(b)–(d), and Insurance Code §

790.03(h)(1)/(3)/(5). Case anchors: Neville v. Chudacoff (2008) 160 Cal.App.4th 1255, 1268–1269; Briggs, supra, 19 Cal.4th at 1115.

802-C. That CSAA’s pre-litigation, non-communicative, regulatory failure to investigate is “protected activity” within § 425.16(e), or in the alternative, that it is not illegal as a matter of law under Flatley v. Mauro. The same conduct violates (i) the regulatory floor at 10 CCR § 2695.7(d) (“decision must be based on all information reasonably available”); (ii) Insurance Code § 790.03(h)(1), (h)(3), and (h)(5) (failure to acknowledge / promptly investigate / effectuate prompt, fair, equitable settlements); and (iii) the Cal. Sup. Ct. duty under Egan v. Mutual of Omaha Ins. Co. (1979) 24 Cal.3d 809, 818–819, and Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713, 720–721, to investigate thoroughly and fairly in the face of inquiry-notice indicia in the file. Conduct that is regulatorily and statutorily prohibited is not transformed into “petitioning” by being later memorialized in a denial letter. Flatley v. Mauro, supra, 39 Cal.4th 299, 317–320.

802-D. That Position A (the Feb. 25, 2021 “concluded investigation” representation) and Position B (the 2025 panel-counsel disclaimers in companion CGC-25-631801) can both be honest, when both poles are statements of CSAA itself under Civ. Code §§ 2330, 2338, and Evid. Code § 1222 (see also American Mutual Liability Ins. Co. v. Superior Court (1974) 38 Cal.App.3d 579, 591–592; Gulf Insurance Co. v. Berger, Kahn, Shafton, Moss, Figler, Simon & Gladstone (2000) 79 Cal.App.4th 114, 124; Purdy v. Pacific Automobile Ins. Co. (1984) 157 Cal.App.3d 59, 76). The structural impossibility of honest belief in both poles is, by itself, Engalla reckless disregard and forecloses any “genuine dispute” defense under Wilson v. 21st Century Ins. Co., supra, 42 Cal.4th at 723 — leaving the defense without a path to recharacterize regulatory misconduct as “speech.”

802-E. That the Litigation Privilege (Civ. Code § 47(b)) reaches the underlying premature file-closure act and the institutional “deny-delay-defend” practice pleaded at ¶¶ 28–30. The privilege protects communicative acts; closing a claim file before retrieving reasonably-available first-responder records is a non-communicative regulatory act. Defendants cannot retroactively privilege institutional misconduct by writing a denial letter “about” it. Case anchors: Kimmel v. Goland, supra, 51 Cal.3d at 211; Rusheen v. Cohen, supra, 37 Cal.4th at 1056, 1058.

802-F. That CSAA’s “funding and directing of defense counsel” in the underlying Rosario v. Abdelhalim litigation is “petitioning” by CSAA itself, given that CSAA was a non-party indemnitor whose underwriting of the defense is commercial and contractual, not petitioning for redress of its own grievances. A non-party insurer’s financial underwriting of an insured’s defense, on its own claim file, is a commercial activity outside § 425.16(e). Case anchors: Park, supra, 2 Cal.5th at 1062–1065; Rusheen, supra, 37 Cal.4th at 1056.

Closing paragraph — Case 802 (suggested)

Because every act Defendant CSAA identifies as “protected” is either (i) ordinary first-party-style claims-handling correspondence to an unrepresented direct third-party claimant — i.e., the kind of regulatory activity Neville and Briggs exclude from § 425.16 — or (ii) the after-the-fact written evidence of CSAA’s pre-litigation, non-communicative regulatory failure to retrieve reasonably-available first-responder evidence before closing the claim file at twenty-one days — i.e., conduct outside § 425.16 under Park, Rusheen, and Kwikset — and because the same conduct is illegal as a matter of law under 10 CCR § 2695.7(d), Insurance Code § 790.03(h), and Egan/Wilson, placing it outside § 425.16 under Flatley, CSAA does not carry its prong-one burden. The special motion to strike must be denied without reaching prong two; in the alternative, on the lodged Third Amended Complaint and the Sweetwater record, Plaintiff easily satisfies the minimal-merit showing under prong two on the reckless-disregard scienter floor.

PART IV — DRAFTING NOTES (DO NOT FILE)

1. **Numbering.** Part I is shared (items 1–13); Parts II and III use letter-suffixes (801-A through 801-E; 802-A through 802-F) so the same “Item 4 (Park gravamen)” reads identically across both oppositions.
2. **Lodging hook.** Both Part II and Part III closings reference the lodged TAC at step two via Sweetwater Union High Sch. Dist. v. Gilbane Bldg. Co. (2019) 6 Cal.5th 931 and Code Civ. Proc. § 425.16(b)(2). That preserves the fallback even if the court never reaches prong two.

3. **Cross-case spine.** Items 801-D and 802-D mirror each other. Citing the companion case is appropriate under both TACs' § 0.5 cross-case spine; both TACs already plead the structural impossibility expressly.
4. **Litigation privilege overlap.** Item 13 (shared) and items 801-E / 802-E (case-specific) intentionally overlap. Use Item 13 if the defense argues litigation privilege as a free-standing affirmative defense; use 801-E / 802-E to defeat its use as a prong-one workaround for non-communicative conduct.
5. **Newport Harbor (item 11).** Useful only if the operative pleading at the hearing is the SAC (filed Apr. 16/Apr. 21, 2026). If the court considers the lodged TAC, raise Newport Harbor defensively to confirm that the TAC's reckless-disregard floor and § 6128(a)/Insurance Code § 790.03(h) anchors do not reopen any window the defense missed.
6. **Source map.** Item 1 = Source 1 (item 1) + Source 3 (item 1). Item 2 = Source 1 (item 2). Item 3 = Source 1 (item 3) + Source 3 (item 2). Item 4 = Source 2 (item 1). Item 5 = Source 1 (item 4). Item 6 = Source 2 (item 2). Item 7 = Source 1 (item 5). Item 8 = Source 1 (item 7). Item 9 = Source 1 (item 6). Item 10 = Source 1 (item 8). Item 11 = Source 1 (item 9). Item 12 = Source 1 (item 10) + Source 2 (item 4). Item 13 = Source 3 (item 4). Source 2 (item 3) and Source 2 (item 4) split into the per-case Parts II and III. Source 3 (item 3) is folded into Item 5.

END OF MERGED CHECKLIST

Source draft: 00-DRAFT-RAW-PRONG-ONE-CHECKLISTS.md (this directory).